

**1. GENERAL INFORMATION**

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Solicitation Number: 12363N26Q4131  
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Product or Service Code: Z1LB  
Set Aside: Small Business  
NAICS Code: 237310 Highway, Street, and Bridge Construction – \$45 Million

**Contracting Office Address**

USDA Forest Service  
Procurement and Property Services  
National Stewardship Contracting Branch  
1400 Independence Ave. SW, MS-1138  
Washington DC 20250-1138

This is a combined synopsis/solicitation for commercial services prepared in accordance with [FAR 12](#). This announcement constitutes the only solicitation; offers are being requested, and a separate written solicitation will not be issued.

Solicitation number 12363N26Q4131 has been issued as a Request for Quotes (RFQ) for the Siuslaw NF CCRD Road Maintenance.

This acquisition is set aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at [www.acquisition.gov](http://www.acquisition.gov).

The associated North American Industrial Classification System (NAICS) code for this procurement is 237310 –Highway, Street, and Bridge Construction, with a small business size standard of \$45 Million. The product service code is Z1LB. The government intends to award a Firm Fixed Price contract resulting from this combined synopsis/solicitation to the responsible offeror whose offer, conforming to the synopsis/solicitation, will be most advantageous to the government (as determined by the solicitation evaluation criteria). All responsible sources may submit a quotation which will be considered by the agency, and proposals shall be valid for 60 days after the date of receipt for the solicitation.

**Points of Contact**

Thomas Tran, Contracting Officer, [thomas.tran2@usda.gov](mailto:thomas.tran2@usda.gov)

No organized site visit is scheduled for this project. Interested vendors are encouraged to visit the project area to familiarize themselves with the requirements.

Offerors shall quote in accordance with the SOW. Please provide your price and technical proposal separately. Technical proposals that fail to adequately address all evaluation factors and criteria will receive a reduced score or may not be considered.

Quotes shall be valid for a minimum of 60 calendar days after submission.

Please label file name by format below:

Company name, price or technical proposal or both and name of project

Ex. USDA Price/Technical Proposal Solicitation #

|                                                     |       |       |                 |        |         |      |
|-----------------------------------------------------|-------|-------|-----------------|--------|---------|------|
| Payment will be made via EFT. Invoice using IPP.Gov |       |       |                 |        |         |      |
| Set Aside<br>For:                                   | Large | Small | Woman-<br>Owned | SDVOSB | Hubzone | 8(a) |
| (Please check all<br>that apply)                    |       | X     |                 |        |         |      |
| <b>**MUST HAVE ALL INFO BELOW**</b>                 |       |       |                 |        |         |      |
| Company Name:                                       |       |       |                 |        |         |      |
| Vendor Rep:                                         |       |       |                 |        |         |      |
| Phone:                                              |       |       |                 |        |         |      |
| Email:                                              |       |       |                 |        |         |      |
| Mailing Address:                                    |       |       |                 |        |         |      |
| UEI SAM #                                           |       |       |                 |        |         |      |

Estimated Period of Performance 06/01/2026 – 05/31/2027

Contractor Signature: \_\_\_\_\_

Contractor Parent BPA/IDIQ #: \_\_\_\_\_

**\*\*QUOTES ARE DUE BY: 05/21/2026 by 11:00AM CST\*\***

Questions are due by COB 5/14/2026

**EVALUATION CRITERIA:****TECHNICAL PROPOSAL INSTRUCTIONS****General**

Proposals shall be submitted in two parts: a technical proposal and a price proposal. Each part shall be separate and complete in itself so that evaluation of one may be accomplished independently of the other. The price proposal shall be submitted with the solicitation forms.

Offerors are cautioned that sufficient and detailed information must be presented in their proposals to enable the Government to evaluate their proposals fully in accordance with the evaluation and award criteria contained herein. The Government is not obligated to ask for additional information and in the absence of appropriate information, the proposal will be rated deficient.

**Price Proposal**

A completed schedule of items with pricing information completes this requirement.

**Technical Proposal**

Offerors shall submit technical information for their firm and any proposed major subcontractors. Please submit your past performance with the technical information. Also, the offeror shall submit information that illustrates a technical understanding of the work to be performed.

**1) Relevant Past Performance:**

Relevant Past Performance shall be obtained from previous work with the Federal Government and utilized for evaluation on this contract. Please provide at least 3 past performances with references.

**2) Technical Approach:**

All offerors should show a high level of understanding of the work to be performed. This can be accomplished by submitting with the proposal the following information:

1. Description of how the work will be performed
2. Schedule (accomplishing work while meeting weather conditions)
3. Key Personnel
4. List of equipment to be used

**3) Experience/Qualification:**

The Offeror will be evaluated on the experience and qualifications of their company and personnel.

**Technical Evaluation Criteria**

Technical proposals will be evaluated and rated by a Technical Evaluation Panel. Proposals shall be prepared in accordance with the proposal preparation instructions. The Government intends to evaluate quotations using a comparative evaluation methodology. This means quotations will be compared against one another to determine which provides the best value to the Government, based on the evaluation factors outlined in this solicitation.

The Government may consider quotations that exceed minimum requirements and offer additional value or benefits, even if they are not the lowest priced.

**1) Relevant Past Performance:**

a) Relevant Past Performance shall be provided and utilized for evaluation on this contract.

**2) Technical Approach:**

b) Understanding of Proposed Work: Offeror demonstrates a technical understanding of the proposed work including but not limited to preliminary scheduling, equipment requirements, site conditions and location, project challenges, and material requirements.

**3) Experience/Qualification:**

Evaluates the company's history, background, and ability to perform work of similar size, scope, and complexity. Specialized work and accomplishments relative to the scope of work.

**4) Acceptability:**

An offeror's documented response to the solicitation will not be deemed acceptable, if not received by the specified closing date and time, and the submitted proposal not clearly demonstrate the offerors understanding the needed work. In such cases the offeror will be viewed as having "failed" this criterion and will not be considered for award.

**5) Cost or Price:**

Each acceptable offer will be evaluated for reasonableness of proposal price. This criterion will include consideration of cost information provided. It is the Government's intent to assess the unit prices to determine reasonableness and offeror's understanding of the work and ability to perform the contract. The importance of price may become greater as the differences between technical proposals decrease. Where technical proposals are determined to be substantially equal, price may control award.

(b) Award. A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

**ATTACHMENT 1 Siuslaw National Forest, CCRD FY26 Road Maintenance**

For: Siuslaw National Forest, Central Coast Ranger District

**SCHEDULE OF ITEMS**

| <b>Line Item</b> | <b>Description</b>                       | <b>Quantity</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Amount</b> |
|------------------|------------------------------------------|-----------------|-------------|-------------------|---------------|
| 0001             | Surface Maintenance w/ Roller Compaction | 12              | Miles       | \$                | \$            |
| 0002             | Spot Surfacing-Commercial Source         | 2300            | CY          | \$                | \$            |
| 0003             | Asphalt Surface Maintenance              | 400             | Tons        | \$                | \$            |
| 0004             | Clean Ditches & Drainage Structure       | 25              | Miles       | \$                | \$            |
| 0005             | Cutting Roadway Vegetation               | 39              | Miles       | \$                | \$            |
| 0006             | Trash Removal Sites                      | 9               | Each        | \$                | \$            |
| 0007             | Fabricate and Install Vehicle Gate       | 2               | Each        | \$                | \$            |
| 0008             | Install Earthen Berm Barrier             | 13              | Each        | \$                | \$            |
| 0009             | Install 24" CMP                          | 40              | Feet        | \$                | \$            |
| 0010             | Full Depth Asphalt Reclamation           | 300             | Feet        | \$                | \$            |
| 0011             | Mobilization                             | 1               | Lump Sum    | \$                | \$            |
|                  | Total                                    |                 |             |                   | \$            |

No rounding unit pricing or totals. Unit price and totals shall be in exact dollars and cents(two decimal places).

Contractor's Signature: \_\_\_\_\_

Date: \_\_\_\_\_

a) One award will be made from this solicitation; offerors must submit pricing for all items.

b) Offeror must have an "Active" registration at [www.sam.gov](http://www.sam.gov) at time of award.

| CCRD26-01 Description of Work                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <p style="text-align: center;"><b>General Notes:</b></p> <p>Roadway brushing widths will be 10 feet slope distance from road edge and height will be 14 feet measured from the surface of the travel way. Reclaim all turnouts, curve widening and road width.</p> <p>Ditches and Drainage structures will be removed of <u><b>ALL</b></u> vegetation. Vegetation may be left within 20 feet of a stream channel.</p> <p>Aggregate placement locations are typically where potholing exists or water-bar locations. Locations of aggregate placement will be scarified; aggregate will be blended with existing road surfacing and compacted. Aggregate grading S shall be from commercial source. Aggregate courses shall be compacted using Method B. Other aggregate gradations may be utilized in lieu of specified gradations upon Forest Service approval. Waste areas will be identified by the Forest Service.</p> |           |
| Measure of Accomplishment: Entire Project                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Quantity: |

**Item Totals:**

|                                    |         |       |
|------------------------------------|---------|-------|
| 811(1) Blade & Compact             | 12.00   | Miles |
| 834(2) Ditch & Drainage Structures | 24.97   | Miles |
| 842(1) Brushing                    | 38.67   | Miles |
| 814-F1 Asphalt Surface Maintenance | 400.00  | Tons  |
| 831(2) Spot Surfacing              | 2350.00 | CY    |
| Asphalt Reclamation                | 300.00  | FT    |
| Install Culvert                    | 1.00    | EA    |
| Install Earthen Berm               | 13.00   | EA    |
| Fabricate & Install Gate           | 2.00    | EA    |
| Trash Removal                      | 9.00    | EA    |

**POC for this Project:**

Jacob Hunt  
541-961-8214  
[jacob.hunt@usda.gov](mailto:jacob.hunt@usda.gov)

[illegible]

US Department of Agriculture (USDA)

Performance Work Statement (PWS)

CCRD FY26 Road Maintenance Service

Siuslaw National Forest

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## Project

CCRD FY26 Road Maintenance

## General Information

### 1.0 Scope of Work

The Siuslaw National Forest requires road maintenance services throughout the Central Coast Ranger District, and the Oregon Dunes National Recreation area.

Specific performance tasks are listed in the Description of Work.

Specifications for the specific performance task can be found in Attachment 2 Road Maintenance Specifications.

### 2.0 Background

#### Project Location

The project is at various locations within the Central Coast Ranger District, and Oregon Dunes National Recreation Area.

### 2.1 Period of Performance

Base Period: June 1<sup>st</sup>, 2026 to May 30<sup>th</sup>, 2027

## Contractor Requirements

### 3.0 Performance Tasks

See Attached Description of Work

#### 3.1 General:

3.1.a. This is a non-Personnel Services Contract. The Contractor shall furnish all labor, supervision, equipment, transportation, (except those designated as Government-furnished), and incidentals for road maintenance activities within the Siuslaw National Forest within the scope of this contract.

3.1.b Contractor Work Plan: The contractor shall submit a (FINAL) Contractor Work Plan for acceptance to the COR within seven (7) calendar days of award. **(Deliverable).**

#### **A Draft Contractor Work Plan shall be submitted as part of evaluation criteria.**

At a minimum, the Contractor Work Plan shall include:

- 1) Key Personnel (See also PWS 7.0).
- 2) Traffic Control Plan: following FSSS 156 and the Manual on Uniform Traffic Control Devices (MUTCD): <https://mutcd.fhwa.dot.gov/>.
- 3) Safety and Communications Plan.
- 4) Fire Plan **(See sample Attachment 5).**
- 5) Contractor's Quality Control Plan: following FP-03 153.02 and Best Management Practices for Water Quality Management: Road Management Activities can be found in Section 3 at National Best Management Practices for Water Quality Management on National Forest System Lands (usda.gov).
- 6) FS Overload Permits.
- 7) Contractor equipment storage request, if necessary.

### 4.0 Property

#### 4.1 Contractor Property

(a) The contractor may store equipment and materials within the Siuslaw National Forest as approved by the COR. The contractor shall submit an equipment and materials storage plan to the COR for approval within 7 calendar days of contract award. **(Deliverable)**

(b) The contractor stores equipment and material at its own risk and is responsible for the security of any contractor property stored on Government lands and facilities. The contractor holds the Government harmless for property security and damage.

#### 4.2 Government-furnished materials: None

#### 5.0 Deliverables / Schedule

| DELIVERABLE                     | REFERENCE                                                                                                                                                                                                                                                                           | DUE                                                 | SUBMIT TO                            |
|---------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|--------------------------------------|
| The FINAL Contractor Work Plan  | PWS Paragraph 3.1.b.<br>Based on PWS Paragraphs 3.2-3.8, provide Contractor Work Plan which outlines the contractor's technical approach, equipment and material requirements, scheduling, and any government sites for material and equipment storage/parking and access required. | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| Contractor on-site Manager      | PWS 7.0 Contractor Key Personnel<br>Incorporate into Contractor Work Plan<br>Submit the name and contact information of the contract manager in writing                                                                                                                             | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| Traffic Control Plan            | PWS Paragraph 3.1.b<br>Incorporated into the Contractor Work Plan                                                                                                                                                                                                                   | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| Safety and Communications Plan  | PWS Paragraph 3.1.b<br>Incorporated into the Contractor Work Plan                                                                                                                                                                                                                   | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| Fire Plan                       | PWS Paragraph 3.1.b Incorporated into the Contractor Work Plan. See sample Fire Plan (Attachment 5)                                                                                                                                                                                 | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| Contractor Quality Control Plan | Incorporated into the Contractor Work Plan. The Contractor shall develop and maintain a QCP to ensure services are performed in accordance with this PWS.                                                                                                                           | Within seven (7) calendar days after contract award | Contracting Officer's Representative |
| FS Overload Permits             | PWS 3.1.b<br>Incorporate into Contractor Work Plan                                                                                                                                                                                                                                  | Within seven (7) calendar days after contract award | Contracting Officer's Representative |

|              |                                                            |                                               |                                         |
|--------------|------------------------------------------------------------|-----------------------------------------------|-----------------------------------------|
| Storage Plan | PWS 4.0 Property<br>Incorporate into Contractor Work Plan. | Within seven<br>(7) calendar<br>days of award | Contracting Officer's<br>Representative |
|--------------|------------------------------------------------------------|-----------------------------------------------|-----------------------------------------|

## 6.0 Travel

Not Used

## 7.0 Contractor's Key Personnel

The Contractor shall provide a Contract Manager and designated alternate, as applicable, who has full authority to act for the Contractor on all contract matters relating to this contract. The Contract Manager or alternate shall be available during the Government's regular working hours and shall be available on site within one hour after the Government's regular working hours. The Contractor shall submit the name and contact information of the contract manager in writing to the COR within 7 calendar days of award. **(Deliverable)**

## 8.0 Security Requirements

Not Used

## 9.0 Data Rights

Not Used

## 10.0 Section 508 – Electronic and Information Technology Standards

Not Used

## **ATTACHMENT 2 – SPECIFICATIONS**

### **SCOPE OF CONTRACT**

This contract is established for the purpose of providing routine and recurring maintenance of forest and administrative use roads managed by the Central Coast, Hebo Ranger Districts, and the Oregon Dunes National Recreation Area, Siuslaw National Forest. The Contractor shall furnish all labor, materials, equipment, tools, transportation, and supplies and perform all work required to complete the project in accordance with drawings, specifications, and terms of the contract.

Maintenance work consists of a variety of road repair activities including but not limited to the following:

- Blading
- Compaction
- Ditch maintenance
- Drainage structure maintenance
- Roadway drainage maintenance
- Spot Surfacing
- Pothole / Skin Patching
- Removal and disposal of materials
- Roadside brushing

### **PERFORMANCE PERIOD**

Base Period: June 1st, 2026 to May 30<sup>th</sup>, 2027

### **APPLICATION OF SPECIFICATIONS, DRAWINGS AND TERMINOLOGY**

Standard specifications, drawings, definitions, abbreviations and quantity measurement terms included herein may not immediately apply to the specific work identified for Base Year 2019. These standardized requirements, if included herein, are intended to normally apply to any future work identified for addition to the contract. In addition to those included herein, there may be other specifications, drawings and terminology added via mutual agreement as needed.

### **FURNISHING OF MATERIAL**

Unless otherwise stated on a delivery order, the Contractor shall furnish all material required for performance. All material shall comply with the specifications. The Contractor shall verify the kind and amount of work that may be necessary in furnishing the material.

The Contractor shall furnish and deliver the material to the site of the work in such a manner that their quality and fitness for the work is preserved.

The Contractor shall be responsible for furnishing warning devices and complying with the safety standards and traffic management procedures as required by the current edition of the MUTCD for the life of this contract.

### **ABBREVIATIONS**

Whenever in these specifications, or in other contract documents, the following terms, or pronouns in place of them, are used, the intent and meaning shall be interpreted as follows: (Reference to a specific standard or specification shall mean the latest addition or amendment thereto in effect on date of Invitation for Bids.)

1. AASHTO - American Association of State Highway and Transportation Officials.
2. ASTM – American Society for Testing and Materials.
3. AWPA – American Wood Preservers Association.
4. CS - Commercial Standard Issued by U.S. Department of Commerce.
5. EPA - Environmental Protection Agency.
6. FAR - Federal Acquisition Regulation System.
7. FED SPEC - Federal Specifications.
8. FP-03 - Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects.
9. FSS - Federal Specifications and Standards.
10. MSHA - Mine Safety Health Administration.
11. MUTCD - Manual of Uniform Traffic Control Devices.
12. NBS - National Bureau of Standards.
13. OSHA - Occupational Safety and Health Act.
14. PS - Product Standard issued by the U.S. Department of Commerce.
15. UL - Underwriter's Laboratories, Inc.

### **QUANTITY MEASUREMENT TERMS**

1. U.S. Customary Units of measure are used in conjunction with these specifications.
2. The methods of measurement and computation will be those necessary to accurately determine the quantities of materials furnished and work performed.
3. A station, when used as a definition of term or measurement will be one hundred feet, or a precise location along a survey line.
4. Miles will, in the absence of known distances from existing plans or surveys, be determined by the Government using a calibrated survey odometer or equal substitute operated on the traveled way at or parallel to road centerline.

5. A CY-MI is the amount of material in the hauling vehicle, hauled one (1) mile. Sometimes referred to as a "loaded mile".
6. The term "ton" will mean 2000 pounds. Trucks used to haul material measured by truck weight shall be weighed empty at least once daily, and each truck shall bear a plainly legible identification mark. Weigh tickets furnished by the Contractor from certified scales will be used to determine weight measurements.
7. Materials measured by the cubic yard in the hauling vehicle shall be measured therein at the point of delivery. Vehicles may be of any size or type, provided that the box is of such shape that the actual volume may be readily and accurately determined.
8. Measurement by the acre will use the length and width treated. Measurement of width will approximate significant slope breaks, but will not include minor deviations along the slopes. The measured slope distance for the length will multiply width treated and converted to a standard 10,000 square yard or acreage value of the surface area treated.
9. The term "lump sum" when used in the Schedule of Items will mean the complete unit as required by or described in the contract.
10. Measurement will be made of each item or unit of work, as shown in the Schedule of Items, completed and accepted in accordance with the contract provisions, specifications, and drawings.

### **MEASUREMENT AND PAYMENT**

Measurement and payment for contract work will be made only for "work ordered under" those pay items included in the Schedule of Items. Measurement and payment for work or materials required to complete the project "in accordance with" the drawings and specifications and which are not included as pay items in the Schedule of Items will be considered as incidental to and included in the payment for other pay items shown and separate measurement and payment will not be made.

### **BASIS OF PAYMENT**

Invoice payments may be made for completed units of work as determined by the Contracting Officer or the COR. Payment authorization will be dependent upon an inspection of the project and will be based on adherence to the work specifications.

### **AGAR 452.211-73 ATTACHMENTS TO STATEMENT OF WORK/SPECIFICATIONS (FEB 1988)**

The attachments to the Statement of Work/Specifications listed in Section J are hereby made part of this solicitation and any resultant contract.

**GENERAL NOTES**

- 832 Load, Haul, and Place Material: Slough and Slide material that has accumulated in the ditch/roadway that is 5 CY or less shall be considered incidental.
- 851 Hazard and Obstruction Removal: Logging out trees less than 10-inches shall be considered incidental.

**Specification List – Road Maintenance Services for Siuslaw National Forest****SECTION 811 – SURFACE MAINTENANCE****811.01****Service Required**

Smooth and shape native or aggregate surfaced roads including traveled way, shoulders, turnouts, and intersections. Reshape or recondition ditches, water bars, and drain dips.

When roller compaction is required, a minimum of an 7-10 ton vibratory roller will be operated over the full width of the roadway for a minimum of 3 complete passes over the full width until there is no visible evidence of consolidation. One pass is defined as operating the vibratory roller from the point where blading begins to the point where blading ends. Adjust the moisture content to a level suitable for compaction.

**811.02****Performance Standards**

A road surface is maintained to standard when the surface is compact, crowned, or sloped to drain, without segregation of the surfacing materials. The road surface has no ruts, rills or other irregularities & suitable materials have been recovered and incorporated. Unsuitable materials have been removed. Ditches and road surface drainage structures function efficiently.

When ordered by the Contracting Officer to work in a weed infested area the contractor will be required to prevent spreading the infestation into un-infested areas by cleaning equipment. The contractor will use wash stations approved by the Contracting Officer.

**811.03****Location of Work**

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, marked on the ground, or as ordered by the Contracting Officer. Locations of weed infested areas are

marked on the ground. Do not operate in the weed infested areas unless ordered to do so by the Contracting Officer.

#### 811.04

##### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. Mile: Surface maintenance will be measured along the centerline of the roadway. Turnouts are incidental. Measurement will be to the nearest one-tenth (0.1) mile.

#### 811.05

##### Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 811 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

##### Pay Item

##### Pay Unit

|        |                                            |      |
|--------|--------------------------------------------|------|
| 811(1) | Surface Maintenance with Roller Compaction | Mile |
|--------|--------------------------------------------|------|

### 813 SPOT SURFACING

#### 813.01

##### Service Required

Load, haul, and place surface material to repair or stabilize road surfaces.

#### 813.02

##### Performance Standard

A. Spot surfacing is complete when the designated quantity of the ordered material has been placed.

B. All materials transported onto National Forest System land will be weed-free. Written documentation of methods used to determine the weed-free status of any and all materials furnished by the contractor will be furnished to the Contracting Officer before transport of any materials onto National Forest System land.

### 813.03

#### Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

### 813.04

#### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. The quantity will be the number of cubic yards measured in the vehicles, or square yards of aggregate placed.

B. Material measured by the ton shall be verified by certified weight tickets.

### 813.05

#### Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 813 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

#### Pay Item

#### Pay Unit

|        |                                   |            |
|--------|-----------------------------------|------------|
| 813(1) | Spot Surfacing, Government Source | Cubic Yard |
| 813(2) | Spot Surfacing, Commercial Source | Cubic Yard |

### 813.06 ACCEPTABLE QUALITY LEVELS:

| Description | Major Defect | Minor Defect | Allowable Defects |       | Required Action |       |
|-------------|--------------|--------------|-------------------|-------|-----------------|-------|
|             |              |              | Major             | Minor | Major           | Minor |

|                    |                                                                                                                                                     |                                                                                                         |   |     |                                                                                                                                      |                                                               |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|---|-----|--------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|
| Depth of Aggregate | Dimension of spot surfacing deviates by more than 1" from depth specified. Or less than 1" from dimension specified buy is consistently high or low | Dimension of spot surfacing deviates by 1" or less than from depth specified and not consistently wide. | 0 | N/A | If depth is low correct placement of aggregate to specified dimension. If depth is high only pay for ordered amount                  | Accept aggregate as placed, pay only for delivered quantities |
| Width of Aggregate | Dimension of spot surfacing is less than specified width or more than 1' wider than specified                                                       | Dimension of spot surfacing is up to 1' wider than specified but not consistently wide                  | 0 | N/A | If width is narrow correct placement of aggregate to dimensions. If width is too wide reshape                                        | Accept aggregate as placed, pay only for delivered quantities |
| Length             | Dimension of spot surfacing is shorter than specified length or more than 100' longer than specified                                                | Dimension of spot surfacing is shorter than specified length or up to 100' longer than specified        | 0 | N/A | If length is shorter than specified, correct placement of aggregate to specified dimensions. If too long pay only for ordered amount | Accept aggregate as placed, pay only for delivered quantities |
| Compaction         | Visible displacement occurs under heavy spreading equipment                                                                                         | N/A                                                                                                     | 0 | N/a | Rework                                                                                                                               | N/A                                                           |

|                   |                                                                                                   |     |   |     |                    |                               |
|-------------------|---------------------------------------------------------------------------------------------------|-----|---|-----|--------------------|-------------------------------|
| Aggregate Quality | Does not meet specified gradation or durability requirements and is not suitable for intended use | N/A | 0 | N/A | Reject and replace | Accept but may reduce payment |
|-------------------|---------------------------------------------------------------------------------------------------|-----|---|-----|--------------------|-------------------------------|

|                       |                                                                                            |                                                                                                   |          |            |                                                 |                                      |
|-----------------------|--------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|----------|------------|-------------------------------------------------|--------------------------------------|
|                       | <b>Material source does not meet weed free requirement</b>                                 | <b>N/A</b>                                                                                        | <b>0</b> | <b>N/A</b> | <b>Reject Source</b>                            | <b>N/A</b>                           |
| <b>Finish Quality</b> | <b>Spot Surfacing doesn't conform to the adjacent road segments and traffic is impeded</b> | <b>Spot Surfacing generally conforms to the adjacent road segments, but traffic may be slowed</b> | <b>0</b> | <b>1</b>   | <b>Reshape or recompact surfacing as needed</b> | <b>Accept but may reduce payment</b> |

### 814 ASPHALT SURFACE MAINTENANCE

#### 814.01

##### Service Required

Cleaning of pavement surfaces consists of removing loose material and vegetation from paved traveled ways, including bridge decks and paved shoulders. Shape existing shoulder to allow drainage.

#### 814.02

##### Performance Standard

Clean the paved surface to the existing width. Move materials away from road centerline on double-lane roads. Blade and shape existing shoulder material the entire width to drain away from the travel way. Vegetative or other unsuitable materials may be bladed onto slopes adjacent to the roadbed unless otherwise required in SPECIAL PROJECT SPECIFICATIONS. Provide a smooth transition with final shaping to the paved surface edge. Move all material longitudinally off the deck while cleaning a bridge deck.

##### Equipment

- A. Use equipment that has capability of removing all loose material from paved surfaces without damage to the surface.
- B. Use of hydraulic flushing equipment will not be permitted within a horizontal distance of 60 meters (200 feet) of a live stream, unless approved in writing by the Government.

#### 814.03

##### Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

814.04

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Single Lane Roads: The work activity will be measured along the centerline of the roadway. Turnouts are incidental. Measurement will be to the nearest one-tenth (0.1) mile.
- B. Double Lane Roads: The work activity will be measured along the centerline of the roadway. Measurement will be to the nearest one-tenth (0.1) mile.
- C. Road Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

814.05

## Payment

A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 814 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay ItemPay Unit

814(1) Paved Surface Cleaning (Single Lane)

Mile

814(2) Paved Surface Cleaning (Double Lane)

Mile

814.06

## Acceptable Quality Levels

| Description        | Major Defect                                        | Minor Defect | Allowable Defects |       | Required Action |       |
|--------------------|-----------------------------------------------------|--------------|-------------------|-------|-----------------|-------|
|                    |                                                     |              | Major             | Minor | Major           | Minor |
| Surfacing Cleaning | More than 5% of surface is not cleaned as specified | N/A          | 0                 | N/A   | Rework          | N/A   |

|                                 |                                                                                                  |                                                                                                  |          |          |               |               |
|---------------------------------|--------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|----------|----------|---------------|---------------|
| <b>Shoulder<br/>Maintenance</b> | <b>Elevation<br/>difference<br/>between<br/>pavement and<br/>shoulder is<br/>greater than 1”</b> | <b>Elevation<br/>difference<br/>between<br/>pavement and<br/>shoulder is greater<br/>than 1”</b> | <b>0</b> | <b>0</b> | <b>Rework</b> | <b>Rework</b> |
|---------------------------------|--------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|----------|----------|---------------|---------------|

SPECIAL PROJECT SPECIFICATION (01/15)  
814-F1 ASPHALT SURFACE MAINTENANCE

814.F1(01)

Service Required

Repair of pavement surfaces.

814.F1(02)

Performance Standard

This work is complete when specified pavement potholes and surface irregularities are repaired using full depth patches or skin patches. Furnish Hot Asphalt Pavement Mix, ODOT Spec. 3/8" Dense Gradation, Level II HMAC, Asphalt Grade PG 64-22, as approved by the CO.

Pothole Patching:

1. Remove material to a minimum depth of 4 inches, or as necessary to reach firm support. If firm support for a patch is unavailable, notify the CO prior to placing any material.
2. Saw cut edges of the prepared hole to form a vertical face in un-fractured asphalt surfacing. Make the prepared hole rectangular, and clean it of all loose material. When the hole is dry, apply emulsified asphalt tack coat faces of the hole. Barricade prepared sites if patching is not performed prior to allowing traffic through the site.
3. Place the asphalt concrete mixture in layers not exceeding 4 inches. Thoroughly compact each layer with mechanical tampers or rollers. For hot asphalt concrete mixtures, compact the mix while it is above 230 °F.
4. Compact the finished surface with an approved steel-wheel roller, as approved by the CO. Ensure that the compacted patch is approximately 1/8 to 1/4 inches above the level of the adjacent pavement.
5. Seal the edges of the completed patch with emulsified asphalt, and blot with fine sand. The CO will approve the exact application rate, temperature, and area to be treated before application and may make adjustments for variations in field conditions.

6. Disposal of asphalt concrete materials removed from pothole patching operations shall be removed from National Forest lands and disposed of in a legal manner. Disposal of asphalt concrete is considered to be incidental to Pothole Patching.

#### Skin Patching:

1. Clean the existing surface of all loose material, dirt, or other deleterious substances by approved methods. Apply asphalt tack coat on a dry, unfrozen surface when the air temperature in the shade is above 35 °F and rising.
2. Where using slow-setting emulsified asphalt, dilute by adding an equal amount of water to the emulsified asphalt. Apply the asphalt at a rate of 0.03 to 0.15 gallons per square yard. Apply the tack coat uniformly and completely by fogging with a hand spray attachment or by another approved method. If excess asphalt material is applied, squeegee the excess from the surface.
3. Allow the tacked surfaces to completely cure before placing the covering course. Place the covering course within 4 hours of placing the tack coat. Place the asphalt concrete mixture as shown in #3, #4 and #5, Pothole Patching.

#### 814.F1(03)

##### Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

#### 814.F1(04)

##### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Ton: Material measured by the ton shall be verified by certified weight tickets.

Tonnage remaining in the haul vehicle, disposed of at an approved waste area, material that does not meet applicable specs, or material that is not placed shall have its quantity measured and shall not be included in final completed and accepted quantities for payment.

814.F1(05)  
Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 814 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay Item

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Pay Unit

814-F1(1) Pothole Patching, Ton  
814-F1(2) Skin Patching, Ton

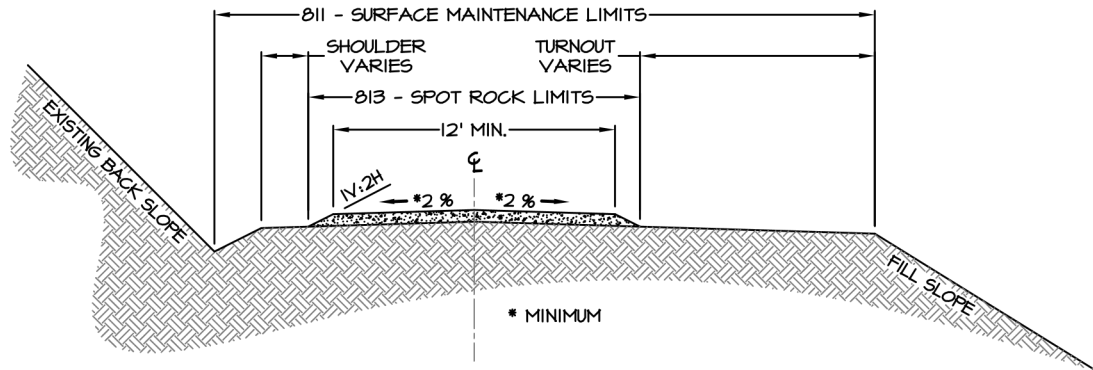
Per Order  
Per Order

**814.06 Acceptable Quality Levels**

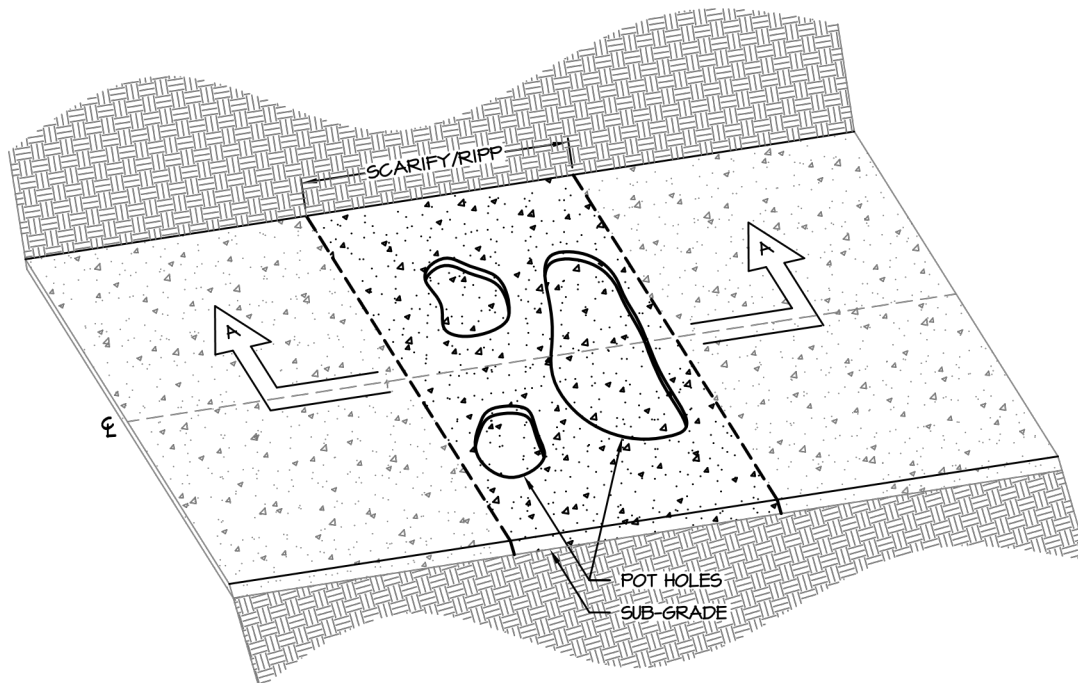
| Description      | Major Defect                                                                    | Minor Defect                                                                          | Allowable Defects |            | Required Action    |                                |
|------------------|---------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|-------------------|------------|--------------------|--------------------------------|
|                  |                                                                                 |                                                                                       | Major             | Minor      | Major              | Minor                          |
| Pothole Patching | Finished elevation does not match adjoining segments by less than 1/4 inch      | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
|                  | Patched material does not properly adhere to adjacent surfaces                  | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
|                  | Area to be patched is not properly prepared                                     | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
| Skin Patching    | Finished elevation does not match adjoining segments by less than 1/4 inch      | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
|                  | Patched material does not properly adhere to adjacent surfaces                  | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
|                  | Area to be patched is not properly prepared                                     | N/A                                                                                   | 0                 | N/A        | Rework             | N/A                            |
| Asphalt Quality  | Product and gradation does not meet Specifications and is not suitable for job. | Product and gradation does not meet Specifications but is otherwise suitable for job. | 0                 | 1 per unit | Reject and replace | Accept but may reduce payment. |

|                                 |                                                                                                                           |                                                                                                                           |          |          |                                         |                                         |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|----------|----------|-----------------------------------------|-----------------------------------------|
| <b>Work Area<br/>Management</b> | <b>Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures</b> | <b>Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures</b> | <b>0</b> | <b>0</b> | <b>Suspend work until in compliance</b> | <b>Suspend work until in compliance</b> |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|----------|----------|-----------------------------------------|-----------------------------------------|

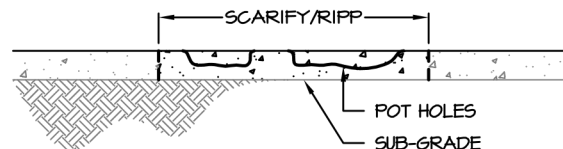




**SURFACE MAINTENANCE & SPOT ROCK**  
**TYPICAL**  
 Not to Scale



**POT HOLE TREATMENT**  
**TYPICAL**  
 Not to Scale



**SECTION A - A**  
 Not to Scale

**NOTES:**

1. GRADING - CROWN ROADS WITH A 2 % - 3 % CROWN. FOR IN-SLOPE/OUT-SLOPE ROADS SLOPE WITH A 2 % - 3 % CROSS SLOPE OVER THE ENTIRE ROAD WIDTH.
2. SPOT ROCK - PLACE MATERIAL THE FULL ROAD WIDTH BY END DUMPING TO A MINIMUM DEPTH OF 3".
3. DITCHES - CLEAN DITCHES THAT DO NOT REQUIRE END HAUL AND WHICH CAN EASILY BE PUSHED WITH A GRADER AS DIRECTED BY CONTRACTING OFFICER. MATCH ORIGINAL DITCH DIMENSIONS.
4. CLEANING DITCHES UNDER B11 - SURFACE MAINTENANCE IS DEFINED AS A MINIMAL EFFORT TO OPEN UP RESTRICTED DITCHES AND IS NOT A SUBSTITUTE FOR INTENSIVE DITCH CLEANING, WHEN REQUIRED, AS COVERED UNDER B34 - ROADWAY DRAINAGE SYSTEM MAINTENANCE.
5. POT HOLES - PRIOR TO GRADING AND SPOT ROCK ACTIVITIES, SCARIFY/RIPP ALL POT HOLES, FULL WIDTH, DOWN TO SUB-GRADE OR FIRM GROUND AS DIRECTED BY CONTRACTING OFFICER.

|                                  |
|----------------------------------|
| 811-F2 & 813-F2 TYPICALS (12/11) |
|----------------------------------|

SECTION 834 – ROADWAY DRAINAGE SYSTEM MAINTENANCE834.01

## SERVICE

## REQUIRED:

Clean and recondition roadway drainage systems including culverts, ditches, inlets and outlet channels, catch basins, and appurtenances.

834.02

## PERFORMANCE STANDARD:

Drainage system maintenance is complete when no obstruction remains in the defined area adjacent to the structure or in ditches which have the potential to block water from entering the structure, back water into the structure (except for structures designed to function in a back-flooded manner), or divert water outside the defined channel. Equipment operation in live streams or hydraulic flushing of drainage structures is not permitted.

Materials produced from drainage system maintenance have been placed outside the roadway without concentrations, without obstructing drainage ways or structures, and are not located where erosion can allow sediment delivery to streams. When specified in the ROAD LISTING, materials have been hauled and placed in designated disposal areas.

834.03

## LOCATION OF WORK:

A. As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the contracting Officer and;

1. Drainage structures including inlet structures, culverts, catch basins, inlet/outlet channels, and ditches within the area SHOWN ON THE PLANS or in the SUPPLEMENTAL SPECIFICATIONS.
2. Culverts – a minimum external horizontal distance of 10 feet in any direction from the inlet and outlet end and a minimum internal distance of 3 feet from the inlet and outlet ends.

3. Ditches adjacent to the roadbed.

4. This work does not include bridges, cattle guards, drain dips, or water-bars.

#### 834.04

#### MEASUREMENT:

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes or number of culverts.

#### 834.05

#### PAYMENT:

A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 834 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section, except payment for hauling and placing of materials will be paid under Section 832.

| <u>Pay Item</u> | <u>Description</u>                    | <u>Pay Unit</u> |
|-----------------|---------------------------------------|-----------------|
| 834(1)          | Clean Ditches                         | Mile            |
| 834(2)          | Clean Ditches and Drainage Structures | Mile            |
| 834(3)          | General Road Maintenance              | LS              |

#### 834.06 ACCEPTABLE QUALITY LEVELS:

| Description                                                       | Major Defect                                                   | Minor Defect                                     | Allowable Defects |                | Required Action |                                        |
|-------------------------------------------------------------------|----------------------------------------------------------------|--------------------------------------------------|-------------------|----------------|-----------------|----------------------------------------|
|                                                                   |                                                                |                                                  | Major             | Minor          | Major           | Minor                                  |
| Blocked Culverts                                                  | Greater than 20% of end area blocked                           | 20% or less of end area blocked                  | 0                 | 1 per pay unit | Rework          | Rework if greater than 1 minor defects |
| Damaged Culvert inlet/outlets                                     | Greater than 20% of end area blocked                           | 20% or less of end area blocked                  | 0                 | 0              | Rework          | Repair                                 |
| Impeded flow for ditches, inlet/outlet channels, and catch basins | Water will be diverted out of the drainage structure or system | <20% impeded, but water will stay in the channel | 0                 | 3 per pay unit | Rework          | Rework if greater than 3 minor defects |

|                                                               |                                                                                                                       |                                                                                                                                     |          |                              |                             |                                               |
|---------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|----------|------------------------------|-----------------------------|-----------------------------------------------|
| <b>Debris on Road produced by Service Provider operations</b> | <b>Any debris in traveled way</b>                                                                                     | <b>N/A</b>                                                                                                                          | <b>0</b> | <b>N/A</b>                   | <b>Rework</b>               | <b>N/A</b>                                    |
| <b>Aggregate Surface Quality</b>                              | <b>Gradation of surface aggregate is degraded by more than 10%</b>                                                    | <b>Gradation of surface aggregate is degraded by 10% or less</b>                                                                    | <b>0</b> | <b>50 Feet per 1000 feet</b> | <b>Rework/ Replace</b>      | <b>Rework if greater than 1 minor defects</b> |
| <b>Backslopes</b>                                             | <b>Undercut backslope will result in destabilization of slope</b>                                                     | <b>Undercut backslope will not result in destabilization of slope</b>                                                               | <b>0</b> | <b>0</b>                     | <b>Repair and Stabilize</b> | <b>Re-vegetate</b>                            |
| <b>Vegetation</b>                                             | <b>Woody vegetation within 5 feet of the inlet end of drainage structures or in ditches that interferes with flow</b> | <b>Low growing vegetation within 5 feet or more of inlet of drainage structures or in ditches that does not interfere with flow</b> | <b>0</b> | <b>N/A</b>                   | <b>Remove</b>               | <b>Remove / Leave in place</b>                |

## 833.06

## Acceptable Quality Levels

| Description                                                                | Major Defect                                                           | Minor Defect                                                          | Allowable Defects |            | Required Action                                                      |                                                                                                             |
|----------------------------------------------------------------------------|------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------|------------|----------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
|                                                                            |                                                                        |                                                                       | Major             | Minor      | Major                                                                | Minor                                                                                                       |
| Culvert size                                                               | Culvert is smaller than the designated diameter shown on the drawings. | Culvert is larger than the designated diameter shown on the drawings. | 0                 | N/A        | Remove culvert and replace with designated size                      | Accept if culvert fits the geometry of the road but pay at designated size otherwise replace                |
|                                                                            | Culvert is shorter than the designated length shown on the drawings.   | Culvert is longer than the designated length shown on the drawings.   | 0                 | 0          | Replace or add section to fit geometry of road.                      | Remove excess culvert and treat cut end, or harden fill slope to prevent erosion and pay for ordered length |
| Grade and alignment of culvert                                             | More than 10% deviation from original lines and grades.                | 10% or less deviation from original lines and grades.                 | 0                 | 1 per unit | Remove and replace culvert                                           | Repair if greater than 1 minor defects                                                                      |
| Sag or depression in road after placement of culvert and backfill material | Greater than 2 inch depression in traveled way                         | 2 inch or less depression in traveled way                             | 0                 | 1 per unit | Furnish, place and compact designated material to repair depression. | Repair if greater than 1 minor defects                                                                      |
| Removed culvert or pieces left on National Forest System Lands             | Culverts or pieces of culvert left on National Forest System Lands     | N/A                                                                   | 0                 | N/A        | Remove from National Forest System Lands                             | N/A                                                                                                         |
| Water-bars                                                                 | More than 10% deviation from original lines and grades.                | 10% or less deviation from original lines and grades.                 | 0                 | 2 per unit | Rework                                                               | Rework if greater than 2 minor defects                                                                      |
| Rolling Dip                                                                | More than 10% deviation from specified lines and grades                | 10% or less deviation from specified lines and grades                 | 0                 | 1 per unit | Rework                                                               | Rework if minor defects interfere with proper drainage                                                      |
| Sedimentation                                                              | Operations cause or allow sediment to leave site.                      | N/A                                                                   | 0                 | N/A        | Cease operations until sediment is controlled                        | N/A                                                                                                         |

|                                 |                                                                                                                                       |                                                                                                                                               |          |          |                                                 |                                             |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|----------|----------|-------------------------------------------------|---------------------------------------------|
| <b>Work Area<br/>Management</b> | <b>Not following approved safety<br/>plan which may include signs,<br/>flaggers, and other temporary<br/>traffic control measures</b> | <b>Not following approved<br/>safety plan which may<br/>include signs, flaggers,<br/>and other temporary<br/>traffic control<br/>measures</b> | <b>0</b> | <b>0</b> | <b>Suspend work<br/>until in<br/>compliance</b> | <b>Suspend work until<br/>in compliance</b> |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|----------|----------|-------------------------------------------------|---------------------------------------------|

## SECTION 842 – ROADWAY VEGETATION MAINTENANCE

### 842.01

#### SERVICE REQUIRED:

Cutting all vegetative growth, including trees and other vegetation less than 5 inches in diameter measured 6 inches above the ground, on roadway surfaces and roadsides to include sand routes. All vehicles/equipment shall have a red or orange flag (8" x 12") displayed 9 feet above the ground when performing service on sand routes.

### 842.02

#### PERFORMANCE STANDARD:

##### A. General

1. Brush, trees and other vegetation are cut within each area treated to a maximum height of 6 inches above the ground surface or obstruction such as rocks or existing stumps. All limbs which extend into the clearing limits, or over the roadbed, to a height of 14 feet above the traveled way surface elevation have been removed.
2. Items to remain will be DESIGNATED ON THE GROUND.
3. Self-propelled equipment is not allowed on cut and fill slopes or in ditches.
4. Trees within the cutting limits, but outside the roadbed and ditch, which are over 5 inches measured at 6 inches above the ground have been limbed in lieu of cutting.
5. Limbed trees have limbs cut within 4 inches of the trunk.
6. There is minimal or no damage to trunks of remaining trees.

##### B. Cutting Side Vegetation

1. The treated area includes the road bed measured from the center line to each defined road edge, or to the bottom of the ditch on ditched road segments, plus an additional 10 feet on each side. Where there is no defined road edge or ditch, the treated area extends 20 feet from each side of the road center line.
2. Transitions between differing increments of cutting width have tapered lengths of not less than 50 feet and not more than 70 feet.

### C. Debris

1. Materials resulting from the cutting operation in excess of 12 inches in length or 1 inch in diameter do not remain on roadway slopes within the treated area, in ditches, or within water courses.
2. Limbs and chunks in excess of 3 inches in any dimension do not remain on the traveled way or shoulders.

### 842.03

#### LOCATION OF WORK:

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or ordered by the Contracting Officer.

### 842.04

#### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

### 842.05 PAYMENT:

- A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 842 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this section.

#### Pay Item

#### Pay Unit

842(1) Cutting Roadway Vegetation

Mile

842.06 - ACCEPTABLE QUALITY LEVELS:

| Description                 | Major Defect                                                                                               | Minor Defect                                                                                        | Allowable Defects |                 | Required Action |                                        |
|-----------------------------|------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|-------------------|-----------------|-----------------|----------------------------------------|
|                             |                                                                                                            |                                                                                                     | Major             | Minor           | Major           | Minor                                  |
| Tree damage                 | Damage to more than 30% of the tree bole                                                                   | Damage to less than 30% of the tree bole                                                            | 2 per pay unit    | 5 per pay unit  | Remove or treat | Treat                                  |
| Horizontal Clearance        | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 0 per pay unit  | Rework          | Rework                                 |
| Vertical Clearance          | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Height above ground surface | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Drainage                    | Impeded flow or water diverted out of drainage structures                                                  | 20% or less impeded, but water will stay in the channel                                             | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Oversized Material          | Concentrations of material greater than 3" in any dimension remaining on traveled way or shoulders         | Isolated pieces of material greater than 3" in any dimension remaining on traveled way or shoulders | 0 per pay unit    | 10 per pay unit | Rework          | Rework if greater than 2 minor defects |
|                             | Material greater than 1" diameter and 12" in length remaining on roadway slopes, ditches or water courses. | N/A                                                                                                 | 0 per pay unit    | N/A             | Rework          | N/A                                    |

|                             |                                                                                                                           |                                                                                                                           |                       |                       |                                         |                                         |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------|-----------------------|-----------------------------------------|-----------------------------------------|
| <b>Work Area Management</b> | <b>Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures</b> | <b>Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures</b> | <b>0 per pay unit</b> | <b>0 per pay unit</b> | <b>Suspend work until in compliance</b> | <b>Suspend work until in compliance</b> |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------|-----------------------|-----------------------------------------|-----------------------------------------|

### SECTION 881 – MOBILIZATION / EQUIPMENT MOVING

#### 881.01

##### SERVICE REQUIRED:

- A. Mobilization of personnel, equipment, and material to the project site.
- B. Moving of equipment outside the established work schedule as ordered.

#### 881.02

##### PERFORMANCE STANDARD:

- A. Mobilization is complete when 100% of the personnel, equipment, and materials necessary to complete the work have been moved to the project site.
- B. Moving is complete when the contractor has moved from the present work site to the ordered work site and returned to the previous location.

#### 881.03

##### LOCATION OF WORK:

As specified on roads listed on the ROAD LISTINGS, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

#### 881.04

##### MEASUREMENT:

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Mile: Work activity will be measured along the shortest feasible route to the nearest one (1) mile, from the starting location on the move, to the ordered work site.

881.05

## PAYMENT:

- A. The accepted quantities will be paid at the contract price per unit of measurement for Section 881 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay Item

881(1) Mobilization:

Pay Unit

Lump Sum

881.06

## Acceptable Quality Levels:

- A. Mobilization is acceptable when all equipment, personnel, and materials are moved to the project site and work has been started.
- B. Ordered moves shall be completed within designated hours, unless agreed otherwise.
- C. Service Provider shall meet the requirements in contract section H for equipment cleaning and weed prevention included in this contract.

| Description                                       | Major Defect                                | Minor Defect | Allowable Defects |       | Required Action                                                          |       |
|---------------------------------------------------|---------------------------------------------|--------------|-------------------|-------|--------------------------------------------------------------------------|-------|
|                                                   |                                             |              | Major             | Minor | Major                                                                    | Minor |
| Weed free equipment                               | Equipment not weed free.                    | N/A          | 0                 | N/A   | Equipment rejected until it can be made weed free                        | N/A   |
| Ordered movement of equipment                     | Equipment not moved within designated time  | N/A          | 0                 | N/A   | Reduce unit cost by X for X amount of time over designated time          | N/A   |
| Equipment meets all state and federal regulations | Does not meet state and federal regulations | N/A          | 0                 | N/A   | Bring equipment up to state and federal regulations or replace equipment | N/A   |

|                 |                                                                                                                 |                                                     |   |     |                                                                                    |                                                          |
|-----------------|-----------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|---|-----|------------------------------------------------------------------------------------|----------------------------------------------------------|
| Equipment leaks | Equipment leaks in sensitive areas or leaks that are large and not typically inherent in the specific equipment | Small leaks inherent in the specific type equipment | 0 | N/A | Replace equipment and restore affected site as directed by the Contracting Officer | Place absorbent pads under equipment when not operating. |
|-----------------|-----------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|---|-----|------------------------------------------------------------------------------------|----------------------------------------------------------|

### **ATTACHMENT #3 – ROAD USE RULES AND RESTRICTIONS**

#### **Commercial Road Rules**

**Objectives:** The Road Rules and Regulations for commercial use of roads on the Siuslaw National Forest are:

1. Provide Siuslaw National Forest road users with a uniform and timely system concerning use requirements on roads in advance of applying for permits or bidding on contracts.
2. Provide Forest Officers with a system to display their road use requirements and to administer them uniformly with all commercial users
3. Implement a responsive system for issuing permits or making other arrangements for authorizing road use to meet the special needs unique to any commercial user.

#### **General Road Rules:**

The roads must be treated and stabilized by reshaping, outslowing, waterbarring, seeding, and closed immediately following project use.

1. Unless otherwise modified by a Specific Road Rule, all roads on the Siuslaw National Forest are subject to these General Road Rules by any permittee, contractor, their agents or general forest road user. Specific Road Rules may waive or further restrict use on a given road and as described within an appropriate document. Examples of roads modified by a Specific Road Rule are as follows:
  - A. Roads planned for obliteration in the appropriate planning document may sustain structural damage to the travelway so long as sediment is contained and not causing environmental damage.
  - B. Roads planned for intermittent use (closed more than one year), in the appropriate planning document, may sustain damage to the travelway and not cause environmental damage.

- C. Roads not having structural capacity to permit haul during all weather or marginal weather conditions. For example, use may be restricted to specific time frames or to physical site conditions such as use restriction for 24 hrs after a 1" rain fall in 24 hour storm event.
2. A National Forest timber purchaser is only authorized to use those roads identified in the list attached to Timber Sale Provisions C5.42 and C5.43 and SPS 104.021. The purchaser is subject to limitations and Specific Road Rules imposed on these roads in Provision C5.12, these Road \ Rules, and any outstanding orders issued by the Forest Supervisor.
  3. Enforcement of the Road Rules is subject to rights granted in existing contracts, permits, and easements in force.
  4. The provision of the State laws relating to the operation of motor vehicles are applicable to all Forest Service roads on the Siuslaw National Forest and are enforceable by State, County, or Forest Service law officers.
  5. The load weight, height, length, and width limitations of vehicles on roads shall be in accordance with applicable State laws (36 CFR 261.12(a))
  6. Commercial use is not permitted on any Siuslaw National Forest road unless the user has a permit or other written authorization. Refer to special order issued under Regulation 36 CFR 261.54(c}.
  7. Forest Service roads are subject to short-term traffic restrictions or closures due to seasonal or unusual weather conditions, user safety, or when necessary to permit reconstruction and maintenance.
  8. Commercial use of National Forest roads by any permittee, contractor, or their agents will be suspended when such use will cause damage to resources, the roadway, structures, or when the use will result in unsafe condition to others. Such suspension shall be effective when the commercial user is notified verbally, in writing, or by road closure posted on the road (36 CFR 261.54). Verbal suspensions are to be followed by notification in writing.
  9. Damaging, and leaving in a damaged condition, any road or segment thereof is prohibited. Damage is exclusive of ordinary maintenance described in the contract or permit (36 CFR 261.12(c). The commercial user is responsible for repairing road damage and restoration of the road to its original load carrying ability, lines, and grades when damage is caused by commercial users' operations. In addition to the road damage described in Exhibit A the following are prohibited:
    - A. Driving crawler or lug equipment upon or leaving tractor marks upon any bridge or structure, including asphalt, concrete, wood or metal surfaces.
    - B. Any bending, breaking, removal, or other damage to bridge rails, bridge decks, guardrails, culverts, signs or signposts, markers, or other structures.

- C. Destruction of the road prism (travelway, ditches, fill and cut slope) not correctable by normal maintenance activity.
10. Exceeding posted bridge weight limits is not authorized, except by permit (36 CFR 261.12(a)).
  11. Snow plowing without permit or other written agreement is prohibited (36 CFR 261.10(a)). Application for a snow removal permit must be requested through the appropriate District Ranger.
  12. All signing requirements on roads open for public use on the Forest will meet Manual Of Uniform Traffic Control Devices (MUTCD) standards.
  13. Unless otherwise provided in a contract, permit, or agreement, no road shall be blocked by placing of any vehicle or other object upon it in a manner that is an impediment or hazard to safety, or conflicts with other users (36 CFR 261.10 (f) and 36 CFR 261.12(d)). Application for permission to block roads or for other uses must be made to the appropriate District Ranger.
  14. The following are examples of impediments or hazards:
    - A. Falling trees onto the roadway without permit and proper warning signs.
    - B. Slow moving logging, construction, or road maintenance equipment operated without posting proper warning signs.
    - C. Logging slash or debris deposited or left in the roadway, ditches or cut bank.
    - D. Parking equipment or vehicles in the roadway without proper signing.
    - E. Logs yarded or decked on the roadway without proper signing.
  15. Any logging operation that requires cables to be suspended above or used across the roadway without proper signing and/or traffic control.
  16. Waivers to Rules may be allowed when such permission is in writing. Permission may be granted and documented using the proper format established in contracts or road use permits. Apply for permission through District Ranger.

#### ROAD DISTRESS AND DAMAGE DEFINITIONS

1. Road Distress: Indicates maintenance must be performed as specified in maintenance specifications. If maintenance cannot be performed, use must be reduced or stopped until signs of distress are no longer present unless otherwise agreed in writing by the Forest Service.
  - A. Road distress indicators on gravel surfaces are:
    1. Surface course deformities (potholes, soft spots, ruts, etc.) greater than 2" deep that can be repaired with incidental loads of aggregate.

2. Drainage not functioning as designed (surface and/or structures).
3. Slurry affecting traction or strength of road and not causing damage as defined under Environmental Damage below.

B. Road distress indicators on pavement are:

1. Any perceptible change in the pavement cross section or surface (cracking, visible deflection, etc.) caused by contractor's operations.
  2. Drainage structures not functioning as designed.
2. Road Damage: Is a reduction in the ability of a road or structure to carry traffic that cannot be corrected by recurring maintenance methods. Use must be stopped and the road repaired unless otherwise agreed in writing by the Forest Service citing the appropriate contract provisions. Road damage exists when:
- A. Load carrying ability of the road is reduced as a result of, but not limited to:
    1. Subgrade pumping and/or combination of surfacing by subgrade.
    2. Excessive soft spots, potholes, or ruts that result in subgrade deformation.
    3. Slurry exists in the roadway but is contained within the roadway or is draining on locations which are containing the sediment by use of biological or man-made erosion control filters.
  - B. Maintenance methods specified in the contract cannot repair the road.
  - C. Failure to maintain drainage causes loss of surfacing, saturation of subgrade layers, degradation of surface course, or erosion of fill slopes.
  - D. Use of asphalt road results in permanent deformation of pavement cross section or degradation of asphalt surface.

II. ENVIRONMENTAL DAMAGE: Is the displacement of soil material, resulting from contract operations, into intermittent or perennial streams that results in an increase in sediment. Environmental damage exists when all of the following occur:

- A. Vehicular traffic causes displacement of fines through pumping, rutting or damage to drainage features creating sediment-laden water on or from the road surface.
- B. Sediment laden water resulting from pumping of fines is reaching intermittent or perennial streams.
- C. Sediment is visible and there is an increase in turbidity in streams occurring at points downstream from the outfalls of culverts, ditch lines, or fords.

Haul will be permitted when facility or environmental damage will not result.

**ATTACHMENT #4****USDA FOREST SERVICE  
PACIFIC NORTHWEST REGION  
FIRE PROTECTION AND SUPPRESSION****1. Fire Period and Closed Season**

Specific fire prevention measures are listed below and shall be effective for the period April 1 to October 31 of each year. The Forest Service may change the dates of said period by advance written notice if justified by unusual weather or other conditions. Required tools and equipment shall be kept currently in serviceable condition and immediately available for initial attack on fires.

**2. Fire Plan**

Before starting any operations on the project, the Contractor, Permittee, Licensee, or Purchaser, hereinafter referred to as the "Contractor", shall prepare a fire plan in cooperation with the Contracting Officer providing for the prevention and control of fires in the project area.

The Contractor shall certify compliance with fire protection and suppression requirements before beginning operations during the fire period and closed season, and shall update such certification when operations change.

**3. Substitute Measures**

The Contracting Officer may by written notice authorize substitute measures or equipment or may waive specific requirements during periods of low fire danger.

**4. Emergency Measures**

The Forest Service may require emergency measures, including the necessary shutting down of equipment or portions of operations in the project area during periods of fire emergency created by hazardous climatic conditions.

**5. Fire Control**

The Contractor shall, independently and in cooperation with the Forest Service, take all reasonable action to prevent and suppress fires in the project area. Independent initial action shall be prompt and shall include the use of all personnel and equipment available in the project area.

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For the purpose of fighting forest fires on or in the vicinity of the project which are not caused by the Contractor's operations, the Contractor shall place employees and equipment temporarily at the disposal of the Forest Service. Any individual hired by the Forest Service will be employed in accordance with the Interagency Pay Plan for Emergency Firefighters. The Forest Service will compensate the Contractor for equipment rented at firefighting equipment rates common in the area, or at prior agreed to rates.

## **6. Compliance with State Forest Laws**

Listing of specific fire precautionary measures herein is not intended to relieve the Contractor in any way from compliance with the State Fire Laws covering fire prevention and suppression equipment, applicable to operations under this contract, permit or license.

## **7. Fire Precautions**

Specific fire precautionary measures are as follows:

### **a. Smoking and Open Fires**

Smoking and fires shall be permitted only at the option of the Contractor. The Contractor shall not allow open fires on the project area without advance permission in writing from Forest Service.

Unless restricted by State Law or Federal Regulation, smoking shall be permitted only in such portions of the project area that are free of flammable material. Smokers shall sit down to smoke in such a position that any burning material will fall within a cleared area, and shall extinguish and press out in mineral soil all burning material before leaving the cleared area.

### **b. Fire Extinguishers and Equipment on Trucks, Tractors, etc.**

All power-driven equipment operated by the Contractor on National Forest land, except portable fire pumps, shall be equipped with one fire extinguisher having a UL rating of at least 5 BC, and one "D" handled or long handled round point shovel, size "0" or larger. In addition, each motor patrol, truck and passenger-carrying vehicle shall be equipped with a double-bit axe or Pulaski, 3-1/2 pounds or larger.

Equipment shall be kept in a serviceable condition and shall be readily available.

**c. Power Saws**

Each gasoline power saw operator shall be equipped with a pressurized chemical fire extinguisher of not less than 8-ounce capacity by weight, and one long-handled round point shovel, size "0" or larger. The extinguisher shall be kept in possession of the saw operator at all times. The shovel shall be accessible to the operator within 1 minute.

**d. Extinguishers**

One refill for each type or one extra extinguisher sufficient to replace each size extinguisher required on equipment shall be safely stored in the fire tool box or other agreed upon place on the project area that is protected and readily available.

**e. Spark Arresters and Mufflers**

Each internal combustion engine shall be equipped with a spark arrester meeting either (1) USDA Forest Service Standard 5100-1a, or (2) appropriate Society of Automotive Engineers (SAE) recommended practice J335(b) and J350(a) as now or hereafter amended unless it is:

- (1) Equipped with a turbine-driven exhaust supercharger such as the turbocharger. There shall be no exhaust bypass.
- (2) A passenger-carrying vehicle or light truck, or medium truck up to 40,000 GVW, used on roads and equipped with a factory-designed muffler complete with baffles and an exhaust system in good working condition.
- (3) A heavy duty truck, such as a dump or log truck, or other vehicle used for commercial hauling, used only on roads and equipped with a factory designed muffler and with a vertical stack exhaust system extending above the cab.

Exhaust equipment described in this subsection, including spark arresters and mufflers, shall be properly installed and constantly maintained in serviceable condition.

**f. Emergency Fire Precautions**

The Contractor shall restrict operations in accordance with the Industrial Fire Precaution Levels listed below. The Forest Service may change the Industrial Fire Precaution Levels to other values upon revision of the National Fire Danger Rating System and may change the specific Industrial Fire Precaution Levels when such changes are necessary for the protection of the National Forest. When sent to the Contractor, the revised Industrial Fire Precaution Levels will supersede the attached levels.

### INDUSTRIAL FIRE PRECAUTIONS SCHEDULE

|       |                                   |
|-------|-----------------------------------|
| LEVEL | INDUSTRIAL FIRE PRECAUTION (IFPL) |
|-------|-----------------------------------|

- I. **Closed season** - Fire precaution requirements are in effect. A fire watch/security is required at this and all higher levels unless otherwise waived.
- II. **Partial hootowl** - The following may operate only between the hours of 8 p.m. and 1 p.m., local time:
- a. Power saws, except at loading sites;
  - b. Cable yarding;
  - c. Blasting;
  - d. Welding or cutting of metal.
- III. **Partial shutdown** - The following shall be prohibited except as indicated:

**Cable yarding** - except that gravity operated logging systems employing non-motorized carriages may be operated between the hours of 8 p.m. and 1 p.m., local time, when all block and moving lines, except the line between the carriage and the chokers, are suspended 10 feet above the ground;

**Power saws** - except power saws may be used at loading sites and on tractor/skidder operations between the hours of 8 p.m. and 1 p.m., local time.

In addition, the following are permitted between the hours of 8 p.m. and 1 p.m., local time:

- a. Tractor/skidder operations;
  - b. Mechanized loading and hauling of any product or material;
  - c. Blasting;
  - d. Welding or cutting of metal;
  - e. Any other spark-emitting operation not specifically mentioned.
- IV. **General shutdown** - All operations are prohibited.

The following definitions shall apply to these Industrial Fire Precaution Levels:

**Cable yarding systems:** A yarding system employing cables and winches in a fixed position.

**Closed season (Fire Precautionary Period):** That season of the year when a fire hazard exists as declared by the responsible agency official.

**Contracting Officer:** The person executing the contract, permit or license on behalf of the Government and includes that person's designated representative, acting within the limits of their authority or the duly appointed successor to the individuals.

**Loading sites/woods site/project area:** A place where any product or material (including but not limited to logs, firewood, slash, soil, rock, poles, posts, etc.) is placed in or upon a truck or other vehicle.

**Low hazard area:** Means any area where the responsible agency representative (WDNR, ORF, BIA, BLM) determines the combination of elements reduces the probability of fire starting and/or spreading.

**Tractor/skidder operations:** include a harvesting operation, or portion of a harvesting operation, where tractors, skidders, or other harvesting equipment capable of constructing fire line, are actively yarding forest products and can quickly reach and effectively attack a fire start.

Waivers, written in advance, may be used for any and all activities. Activities for which waivers may be issued include, but are not limited to:

- a. Mechanized loading and hauling;
- b. Road maintenance such as sprinkling, graveling, grading and paving;
- c. Cable yarding using gravity systems or suspended lines and blocks, or other yarding systems where extra prevention measures will significantly reduce the risk of fire;
- d. Powers saws at loading sites or in felling and bucking where extra prevention measures will significantly reduce the risk of fire;
- e. Maintenance of equipment (other than metal cutting and welding) or improvements such as structures, fences and power lines.

Such waiver, or substitute precautions will prescribe measures to be taken by the Contractor to reduce the risk of ignition, and/or the spread of fire. The Contracting Officer shall consider site-specific weather factors, fuel conditions, and specific operations that result in less risk of fire ignition and/or spread than contemplated when precaution level was predicted. Consideration shall also be given to measures that reduce the precaution levels above. The Contractor shall assure that all conditions of such waivers or substitute precautions are met.

The Contractor shall obtain the predicted Industrial Fire Precaution Level daily, prior to the start of work, from the appropriate Ranger District headquarters. If predictions made after 6:00 p.m., local time, are significantly different than the original prediction, the Forest Service will inform the Contractor when changes in restrictions or industrial precautions are made.

NOTE: The IFPL system does not apply on lands protected by ODF east of the summit of the Cascades.

Where hauling involves transit through more than one shutdown/regulated use area, the precaution level at the woods loading site shall govern the level of haul restriction, unless otherwise prohibited by other than industrial precaution level system.

## **8. Fire Tools**

The Contractor shall furnish serviceable firefighting tools in a readily accessible fire tool box or compartment of sound construction with a hinged lid and hasp so arranged that the box can be secured or sealed. The box shall be red and marked "Fire Tools" in letters one inch high. It shall contain a minimum of:

- a. 2 axes or Pulaskis with a 32-inch handle;
- b. 3 adze eye hoes. One Pulaski may be substituted for 1 adze eye hoe;
- c. 3 long-handled, round point shovels, size "0" or larger.

## **9. Fire Security**

When the Industrial Fire Precautions Level is "I" or higher, unless a waiver is granted, the Contractor shall designate a person who shall perform fire security services listed below on the project area and vicinity. The designated person shall be capable of operating the Contractor's communications and firefighting equipment specified in the contract, excluding helicopters, and of directing the activities of the Contractor's personnel on forest fires. In lieu of having the designated person perform the required supervisory duties, the Contractor may provide another person meeting the qualifications stated above to direct the activities of Contractor's personnel and equipment during all firefighting activities.

Services described shall be for at least 1 hour from the time the Contractor's operations are shut down. For the purposes of this provision, personnel servicing equipment, and their vehicles, who are not engaged in cutting or welding metal are excluded.

Fire security services shall consist of moving throughout the operation area or areas constantly looking, reporting, and taking suppression action on any fires detected. Where possible, the designated person shall observe inaccessible portions of helicopter operating areas from vantage points within or adjacent to project area.

## **10. Blasting**

Whenever the Industrial Fire Precaution Level is "II" or greater, a fire security person equipped with a long-handled, round point, No. "0" or larger, shovel, and a five-gallon backpack pump can filled with water will stay at location of blast for 1 hour after blasting is done. Blasting may be suspended by Forest Service in writing, in an area of high rate of spread and resistance to control.

Fuses shall not be used for blasting. Explosive cords shall not be used without written permission of Forest Service, which may specify conditions under which such explosives may be used and precautions to be taken.

#### **Additional Fire Precautionary Measure 1 - Tank Truck**

11. The Contractor shall provide a tank truck or trailer, containing not less than 300 gallons of water. A tank truck or trailer will not be required if handwork (including power saw operation) is the only work being performed. Such tank truck or trailer shall be maintained in a serviceable condition and located within 10 minutes, round trip, from each project area during fire period and closed season.

The tank truck or trailer shall be equipped with a pump capable of discharging 20 gallons of water per minute, using a ¼ inch nozzle tip, through a 50 foot length of rubber lined hose. In addition, 500 feet of serviceable fabric jacket rubber lined hose of not less than 1 inch outside diameter, fitted with a nozzle capable of discharging a straight stream of ¼ inch diameter and a spray pattern, shall be immediately available for use. The tank, pump and at least 250 feet of hose and nozzle shall be connected and ready for use at all times.

If a trailer is used, it shall be equipped with a hitch to facilitate prompt movement. A serviceable tow vehicle shall be immediately available for attachment to the trailer and must meet the time requirements stated above. Such truck or trailer shall be equipped to operate for a minimum of 8 hours. Tank truck or trailer shall be available from the start of work to the end of the Fire Watch/Fire Security service

#### **Additional Fire Precautionary Measure 2 - Communications**

12. The Contractor shall provide adequate two-way communication facilities to report a fire to the Forest Service within 15 minutes of detection. FCC Regulations prohibit commercial use of Citizen Band [CB] radios. (CBs are not considered adequate two-way communications).

Such communications shall be operable during periods of operation of power driven equipment and shall also include the time fire security is required.

## Quality Assurance Surveillance Plan

## Siuslaw National Forest: C C R D Road Maintenance Service

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**Project Name**

Siuslaw National Forest: Road Maintenance

**Solicitation / Contract Number**

Solicitation: TBD

**Section 1: Introduction**

This Quality Assurance Surveillance Plan (QASP) is pursuant to the requirements listed in the performance work statement (PWS). This plan sets forth the procedures and guidelines that the USDA, Siuslaw National Forest will use in ensuring the required performance standards or services levels are achieved by the contractor.

**1.1 Purpose**

The purpose of the QASP is to describe the systematic methods used to measure performance and to identify the reports required and the resources to be employed. The QASP provides a means for evaluating whether the contractor is meeting the performance standards identified in the PWS. This QASP is designed to define roles and responsibilities, identify the performance objectives, define the methodologies used to monitor and evaluate the contractor's performance, describe quality assurance reporting, and describe the analysis of quality assurance monitoring results.

**1.2 QASP Relation to the Contract****1.2.1 QASP Revisions**

The Contracting Officer Representative (COR) may make revisions or changes to the QASP procedures and surveillance methods or increase or decrease the degree of surveillance methods at any time during the contract performance period. Changes to the Metric must be incorporated into the PWS, Performance Requirement Summary (PRS) and QASP by a bilateral modification to contract that is issued by the Contracting Officer (CO). A copy of the QASP is provided to the contractor to enable the contractor to enhance its Quality Control (QC) program to perform in accordance with its Quality Control Plan (QCP).

**1.2.2 Surveillance of Performance Progression**

As the performance period progresses, the levels of surveillance may be altered for service areas where performance is either consistently excellent or unsatisfactory. If consistently good performance, then the amount of surveillance may be reduced. If observations reveal consistent deficiencies, increased surveillance may be implemented.

**1.3 QASP Relation to the Quality Control Plan (QCP)**

The QCP is a required element of contract and the Contractor shall adhere to its established quality control processes and procedures in managing and performing work as described in the contract. While the QCP represents the way in which the Contractor will ensure its quality and timeliness of services, as defined in the PWS, the QASP represents the way in which the Government personnel specified in *Section 3: Contractor and Government Responsibilities, Paragraph 3.2, Government Responsibilities* will evaluate the contractor's performance. The contractor's QC program and the residual organization's QASP should be complementary programs that ensure successful contractor performance.

**Section 2: Performance Description**

Performance of the contractor will be monitored through the surveillance methods described in Section 4: Surveillance Methods to Perform Quality Assurance to assess the Contractor's performance against PWS requirements.

**2.1 Performance Standards and Acceptable Quality Levels (AQLs)**

For selected activities in the PWS, the PRS provides a performance standard and an AQL. A performance standard is the expected level of contractor performance. An AQL defines the level of performance that is satisfactory. Depending on the service evaluated and the evaluation method selected, performance standards and AQLs may be stated as a number of occurrences or as a percentage. Performance standards and AQLs for random sampling and 100 percent inspection

are generally stated as percentages. For periodic inspections, performance standards may be stated as either percentages or as absolute numbers.

The contract requires the Contractor to perform all work as specified. Any inaccuracies or omissions in services or products are referred to as “defects” on the part of the Contractor. The Contractor shall be responsible for all identified defects and may be required to perform the work at no cost to the government. The AQLs take into account that in some instances an allowable level of deficiencies (deviations) is possible while overall performance continues to meet the government’s desired level of service.

#### 2.1.1 Allowable Deviation

The AQLs define the level or number of performance deficiencies the Contractor is permitted to reach under this contract. AQLs take into account the difference between an occasional defect and a gross number of defects. AQLs can be expressed as a percentage of or as an absolute number (e.g., three per month). There may be instances where 100 percent compliance is required, and no deviation is acceptable (e.g., where safety is involved).

#### 2.1.2 Substantially Complete

In some cases, service outputs are evaluated using subjective values (e.g., excellent, satisfactory, unsatisfactory). The criteria for acceptable performance and for defects must be defined for these service outputs. The concept of “substantially complete” should be the basis for inspections based on subjective scales. Work is considered “substantially complete” where there has been no significant departure from the terms of the contract and no omission of essential work. In addition, the Contractor has performed the work required to the best of its ability and the only variance consists of minor omissions or deficiencies.

#### 2.2 Non-Performance

Non-performance occurs when the contractor’s performance does not meet the AQL for a given requirement. Requirements may contain multiple performance elements, and therefore, deficiencies may occur in one or more aspects of performance (e.g., timeliness, accuracy, completeness, etc.) or subject areas of effort.

When surveillance indicates that the contractor's service output is not in compliance with the contract requirements, the Contracting Officer’s Representative (COR) must determine whether the Contractor or the Government caused the deficiency. If the cause of the defect rests with the Government, corrective action must be taken through Government channels. If the cause of the defect is due to action or inaction by the contractor, the contractor is responsible for correction of the problem at no additional expense to the Government.

##### 2.2.1 Documentation

Documentation of work non-performed or unacceptable work is essential for tracking Contractor performance. The COR will document deficient work by compiling facts describing the inspection methods and results and to substantiate nonconformance with the contract. A sample documentation reporting form is provided in Appendix B, Example Discrepancy Report. The documentation, with any recommendations, will be forwarded to the CO. In the case of the Contractor, the COR will decide whether to elevate the problem to the CO for corrective action.

##### 2.2.2 Remedial Actions

The Federal Acquisition Regulation allows for penalties in the event that the Contractor fails to perform the required services. Penalties are defined as those actions taken under the direction of the CO against the contractor within the general provisions of the contract for nonconformance to the PWS and PRS.

### Section 3: Contractor and Government Responsibilities

#### 3.1 Contractor Responsibility

The Contractor is responsible for delivering products or services in accordance with the contract. Implementing its QCP, which describes the Contractor’s methods for ensuring all products and services under the contract meet established

performance standards and AQLs. Maintaining, and providing for audit, quality control records and reports and all records associated with the investigation and complaint resolutions. Appointing a single quality control point-of-contact to act as a central recipient of communication from the COR or CO.

### 3.2 Government Responsibility

#### 3.2.1 Contracting Officer (CO)

The CO is responsible for administering and monitoring contract compliance, contract administration, and cost control and for resolving any differences between the observations documented by COR and the contractor's performance. The CO may delegate various day-to-day contract administration duties to a Administering ACO (ACO) and/or the COR for performance management and administrative actions such as invoice approval and issuance of Contract Discrepancy Reports may be, and normally are, delegated by the CO to the COR. The CO shall approve any revisions to the QASP processes or standards.

#### 3.2.2 Contracting Officer Representative (COR)

The COR, is designated in writing, by the CO. The COR will ensure that the QA function is properly executed, plays a key role in contract administration and performs the contract surveillance and monitoring. Some key contract administration duties include, but are not limited to, performs surveillance as required by this QASP; make recommendations to the CO for issuance of Contract Discrepancy Reports or letters of commendation and acceptance or rejection of completed work and for administrative actions based on unsatisfactory or non-performed work, and revisions or changes to the QASP; and assists the CO in identifying necessary contract modifications and preparing reports of Contractor performance and cost.

The COR may use the form(s) included in the Appendices to perform the inspection or other forms as approved by the CO.

#### 3.2.3 Customers

Customers or organizations/offices that the Contractor provided support may be requested to assist the COR in conducting QA to provide information relating to the Contractor's performance through Customer Feedback. Information gained from the Customer Feedback may be used in conjunction with other methods of observation to rate the performance of the Contractor.

## Section 4: Surveillance Methods to Perform Quality Assurance

### 4.1 Surveillance Methods

The surveillance methods used in the QA process are the Government's tools to monitor the Contractor's products and services. The best means of determining whether the Contractor has met all contract requirements is to inspect the Contractor's service products and analyze the results. Further, documented inspection results are an effective tool in contract administration that can confirm the successful achievement of all performance requirements or highlight areas where defects exist and improvements are necessary.

#### 4.1.1 Performance Standards and AQLs

Acceptable Quality Level (AQL): AQL will be accomplished by visual inspection on site as compared to Specification 811 Surface Maintenance section 811.06 in Appendix A.

#### 4.1.2 Calculating Acceptable Quality Level, AQLs

Acceptable quality levels AQL will be calculated by dividing the number of acceptable occurrences observed by the number of possible occurrences observed. For example: Paragraph 34 in month one the COR observed 20 surface maintenance tasks. Of the 20 observed services, 19 were satisfactory. 19 satisfactory observations divided by 20 possible observation equals 0.95 or 95%.

#### 4.2 Analysis and Results

When the inspections and validations have been completed, the COR will perform an analysis of the Contractor's performance. The purpose of the analysis is to ensure Government is receiving high-quality products and services from the Contractor. The COR will review the results, rate the Contractor's compliance with the performance standards and AQLs, and characterize the Contractor's overall performance. Analysis of all types of contract monitoring will result in one of the following outcomes:

| Performance Rating | Criteria                                                                                                                                                                                                                                                                                                                            |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Exceptional        | Performance meets contractual requirements and exceeds many to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with few minor problems for which corrective actions taken by the contractor were highly effective.                                             |
| Very Good          | Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with some minor problems for which corrective actions taken by the contractor were effective.                                                   |
| Satisfactory       | Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.                                                                                                                |
| Marginal           | Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being evaluated reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented. |
| Unsatisfactory     | Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.                                                            |

**Appendix A: Maintenance Standards and Quality Levels**SECTION 811 – SURFACE MAINTENANCE811.01

## Service Required

Smooth and shape native or aggregate surfaced roads including traveled way, shoulders, turnouts, and intersections. Reshape or recondition ditches, water bars, and drain dips.

When roller compaction is required, a minimum of an 7-10 ton vibratory roller will be operated over the full width of the roadway for a minimum of 3 complete passes over the full width until there is no visible evidence of consolidation. One pass is defined as operating the vibratory roller from the point where blading begins to the point where blading ends. Adjust the moisture content to a level suitable for compaction.

811.02

## Performance Standards

A road surface is maintained to standard when the surface is compact, crowned, or sloped to drain, without segregation of the surfacing materials. The road surface has no ruts, rills or other irregularities & suitable materials have been recovered and incorporated. Unsuitable materials have been removed. Ditches and road surface drainage structures function efficiently.

When ordered by the Contracting Officer to work in a weed infested area the contractor will be required to prevent spreading the infestation into un-infested areas by cleaning equipment. The contractor will use wash stations approved by the Contracting Officer.

811.03

## Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, marked on the ground, or as ordered by the Contracting Officer. Locations of weed infested areas are marked on the ground. Do not operate in the weed infested areas unless ordered to do so by the Contracting Officer.

811.04

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. Mile: Surface maintenance will be measured along the centerline of the roadway. Turnouts are incidental. Measurement will be to the nearest one-tenth (0.1) mile.

811.05

## Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 811 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay Item

811(1)

Surface Maintenance with Roller Compaction

Pay Unit

Mile

813 SPOT SURFACING813.01

## Service Required

Load, haul, and place surface material to repair or stabilize road surfaces.

813.02

## Performance Standard

A. Spot surfacing is complete when the designated quantity of the ordered material has been placed.

B. All materials transported onto National Forest System land will be weed-free. Written documentation of methods used to determine the weed-free status of any and all materials furnished by the contractor will be furnished to the Contracting Officer before transport of any materials onto National Forest System land.

813.03

## Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

813.04

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. The quantity will be the number of cubic yards measured in the vehicles, or square yards of aggregate placed.

B. Material measured by the ton shall be verified by certified weight tickets.

813.05

## Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 813 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay ItemPay Unit

813(2)

Spot Surfacing, Commercial Source

Cubic Yard

813.06 ACCEPTABLE QUALITY LEVELS:

| Description        | Major Defect                                                                                                                                         | Minor Defect                                                                                            | Allowable Defects |       | Required Action                                                                                                                      |                                                               |
|--------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|-------------------|-------|--------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|
|                    |                                                                                                                                                      |                                                                                                         | Major             | Minor | Major                                                                                                                                | Minor                                                         |
| Depth of Aggregate | Dimension of spot surfacing deviates by more than 1" from depth specified. Or less than 1" from dimension specified but is consistently high or low. | Dimension of spot surfacing deviates by 1" or less than from depth specified and not consistently wide. | 0                 | N/A   | If depth is low correct placement of aggregate to specified dimension. If depth is high only pay for ordered amount                  | Accept aggregate as placed, pay only for delivered quantities |
| Width of Aggregate | Dimension of spot surfacing is less than specified width or more than 1' wider than specified                                                        | Dimension of spot surfacing is up to 1' wider than specified but not consistently wide                  | 0                 | N/A   | If width is narrow correct placement of aggregate to dimensions. If width is too wide reshape                                        | Accept aggregate as placed, pay only for delivered quantities |
| Length             | Dimension of spot surfacing is shorter than specified length or more than 100' longer than specified                                                 | Dimension of spot surfacing is shorter than specified length or up to 100' longer than specified        | 0                 | N/A   | If length is shorter than specified, correct placement of aggregate to specified dimensions. If too long pay only for ordered amount | Accept aggregate as placed, pay only for delivered quantities |
| Compaction         | Visible displacement occurs under heavy spreading equipment                                                                                          | N/A                                                                                                     | 0                 | N/a   | Rework                                                                                                                               | N/A                                                           |

|                   |                                                                                                   |                                                                                            |   |     |                                          |                               |
|-------------------|---------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|---|-----|------------------------------------------|-------------------------------|
| Aggregate Quality | Does not meet specified gradation or durability requirements and is not suitable for intended use | N/A                                                                                        | 0 | N/A | Reject and replace                       | Accept but may reduce payment |
|                   | Material source does not meet weed free requirement                                               | N/A                                                                                        | 0 | N/A | Reject Source                            | N/A                           |
| Finish Quality    | Spot Surfacing doesn't conform to the adjacent road segments and traffic is impeded               | Spot Surfacing generally conforms to the adjacent road segments, but traffic may be slowed | 0 | 1   | Reshape or recompact surfacing as needed | Accept but may reduce payment |

814 ASPHALT SURFACE MAINTENANCE814.01

## Service Required

Cleaning of pavement surfaces consists of removing loose material and vegetation from paved traveled ways, including bridge decks and paved shoulders. Shape existing shoulder to allow drainage.

814.02

## Performance Standard

Clean the paved surface to the existing width. Move materials away from road centerline on double-lane roads. Blade and shape existing shoulder material the entire width to drain away from the travel way. Vegetative or other unsuitable materials may be bladed onto slopes adjacent to the roadbed unless otherwise required in SPECIAL PROJECT SPECIFICATIONS. Provide a smooth transition with final shaping to the paved surface edge. Move all material longitudinally off the deck while cleaning a bridge deck.

## Equipment

A. Use equipment that has capability of removing all loose material from paved surfaces without damage to the surface.

B. Use of hydraulic flushing equipment will not be permitted within a horizontal distance of 60 meters (200 feet) of a live stream, unless approved in writing by the Government.

814.03

## Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

814.04

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. Single Lane Roads: The work activity will be measured along the centerline of the roadway. Turnouts are incidental. Measurement will be to the nearest one-tenth (0.1) mile.

B. Double Lane Roads: The work activity will be measured along the centerline of the roadway. Measurement will be to the nearest one-tenth (0.1) mile.

C. Road Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

814.05

## Payment

A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 814 pay

items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay ItemPay Unit

814(2) Paved Surface Cleaning (Double Lane)

Mile

814.06

## Acceptable Quality Levels

| Description          | Major Defect                                                          | Minor Defect                                                          | Allowable Defects |       | Required Action |        |
|----------------------|-----------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------|-------|-----------------|--------|
|                      |                                                                       |                                                                       | Major             | Minor | Major           | Minor  |
| Surfacing Cleaning   | More than 5% of surface is not cleaned as specified                   | N/A                                                                   | 0                 | N/A   | Rework          | N/A    |
| Shoulder Maintenance | Elevation difference between pavement and shoulder is greater than 1" | Elevation difference between pavement and shoulder is greater than 1" | 0                 | 0     | Rework          | Rework |

SPECIAL PROJECT SPECIFICATION (01/15)  
814-F1 ASPHALT SURFACE MAINTENANCE

814.F1(01)

Service Required

Repair of pavement surfaces.

814.F1(02)

Performance Standard

This work is complete when specified pavement potholes and surface irregularities are repaired using full depth patches or skin patches. Furnish Hot Asphalt Pavement Mix, ODOT Spec. 3/8" Dense Gradation, Level II HMA, Asphalt Grade PG 64-22, as approved by the CO.

Pothole Patching:

1. Remove material to a minimum depth of 4 inches, or as necessary to reach firm support. If firm support for a patch is unavailable, notify the CO prior to placing any material.
2. Saw cut edges of the prepared hole to form a vertical face in un-fractured asphalt surfacing. Make the prepared hole rectangular, and clean it of all loose material. When the hole is dry, apply emulsified asphalt tack coat faces of the hole. Barricade prepared sites if patching is not performed prior to allowing traffic through the site.
3. Place the asphalt concrete mixture in layers not exceeding 4 inches. Thoroughly compact each layer with mechanical tampers or rollers. For hot asphalt concrete mixtures, compact the mix while it is above 230 °F.
4. Compact the finished surface with an approved steel-wheel roller, as approved by the CO. Ensure that the compacted patch is approximately 1/8 to 1/4 inches above the level of the adjacent pavement.
5. Seal the edges of the completed patch with emulsified asphalt, and blot with fine sand. The CO will approve the exact application rate, temperature, and area to be treated before application and may make adjustments for variations in field conditions.
6. Disposal of asphalt concrete materials removed from pothole patching operations shall be removed from National Forest lands and disposed of in a legal manner. Disposal of asphalt concrete is considered to be incidental to Pothole Patching.

## Skin Patching:

1. Clean the existing surface of all loose material, dirt, or other deleterious substances by approved methods. Apply asphalt tack coat on a dry, unfrozen surface when the air temperature in the shade is above 35 °F and rising.
2. Where using slow-setting emulsified asphalt, dilute by adding an equal amount of water to the emulsified asphalt. Apply the asphalt at a rate of 0.03 to 0.15 gallons per square yard. Apply the tack coat uniformly and completely by fogging with a hand spray attachment or by another approved method. If excess asphalt material is applied, squeegee the excess from the surface.
3. Allow the tacked surfaces to completely cure before placing the covering course. Place the covering course within 4 hours of placing the tack coat.  
Place the asphalt concrete mixture as shown in #3, #4 and #5, Pothole Patching.

814.F1(03)

## Location of Work

specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

814.F1(04)

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Ton: Material measured by the ton shall be verified by certified weight tickets.

Tonnage remaining in the haul vehicle, disposed of at an approved waste area, material that does not meet applicable specs, or material that is not placed shall have its quantity measured and shall not be included in final completed and accepted quantities for payment.

814.F1(05) Payment

The accepted quantities will be paid at the contract price per unit of measurement for the Section 814 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

| <u>Pay Item</u>                      | <u>Pay Unit</u> |
|--------------------------------------|-----------------|
| 814-F1(1)      Pothole Patching, Ton | Per Order       |
| 814-F1(2)      Skin Patching, Ton    | Per Order       |



**814.06 Acceptable Quality Levels**

| Description          | Major Defect                                                                                                       | Minor Defect                                                                                                       | Allowable Defects |            | Required Action                  |                                  |
|----------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|-------------------|------------|----------------------------------|----------------------------------|
|                      |                                                                                                                    |                                                                                                                    | Major             | Minor      | Major                            | Minor                            |
| Pothole Patching     | Finished elevation does not match adjoining segments by less than 1/4 inch                                         | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
|                      | Patched material does not properly adhere to adjacent surfaces                                                     | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
|                      | Area to be patched is not properly prepared                                                                        | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
| Skin Patching        | Finished elevation does not match adjoining segments by less than 1/4 inch                                         | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
|                      | Patched material does not properly adhere to adjacent surfaces                                                     | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
|                      | Area to be patched is not properly prepared                                                                        | N/A                                                                                                                | 0                 | N/A        | Rework                           | N/A                              |
| Asphalt Quality      | Product and gradation does not meet Specifications and is not suitable for job.                                    | Product and gradation does not meet Specifications but is otherwise suitable for job.                              | 0                 | 1 per unit | Reject and replace               | Accept but may reduce payment.   |
| Work Area Management | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | 0                 | 0          | Suspend work until in compliance | Suspend work until in compliance |

SECTION 834 – ROADWAY DRAINAGE SYSTEM MAINTENANCE834.01

## SERVICE

## REQUIRED:

Clean and recondition roadway drainage systems including culverts, ditches, inlets and outlet channels, catch basins, and appurtenances.

834.02

## PERFORMANCE STANDARD:

Drainage system maintenance is complete when no obstruction remains in the defined area adjacent to the structure or in ditches which have the potential to block water from entering the structure, back water into the structure (except for structures designed to function in a back-flooded manner), or divert water outside the defined channel. Equipment operation in live streams or hydraulic flushing of drainage structures is not permitted.

Materials produced from drainage system maintenance have been placed outside the roadway without concentrations, without obstructing drainage ways or structures, and are not located where erosion can allow sediment delivery to streams. When specified in the ROAD LISTING, materials have been hauled and placed in designated disposal areas.

834.03

## LOCATION OF WORK:

A. As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or as ordered by the contracting Officer and;

1. Drainage structures including inlet structures, culverts, catch basins, inlet/outlet channels, and ditches within the area SHOWN ON THE PLANS or in the SUPPLEMENTAL SPECIFICATIONS.
2. Culverts – a minimum external horizontal distance of 10 feet in any direction from the inlet and outlet end and a minimum internal distance of 3 feet from the inlet and outlet ends.
3. Ditches adjacent to the roadbed.
4. This work does not include bridges, cattle guards, drain dips, or water-bars.

834.04

## MEASUREMENT:

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes or number of culverts.

834.05

## PAYMENT:

A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 834 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section, except payment for hauling and placing of materials will be paid under Section 832.

| <u>Pay Item</u> | <u>Description</u>                    | <u>Pay Unit</u> |
|-----------------|---------------------------------------|-----------------|
| 834(1)          | Clean Ditches                         | Mile            |
| 834(2)          | Clean Ditches and Drainage Structures | Mile            |
| 834(3)          | General Road Maintenance              | LS              |

834.06 ACCEPTABLE QUALITY LEVELS:

| Description                                                       | Major Defect                                                   | Minor Defect                                     | Allowable Defects |                | Required Action |                                        |
|-------------------------------------------------------------------|----------------------------------------------------------------|--------------------------------------------------|-------------------|----------------|-----------------|----------------------------------------|
|                                                                   |                                                                |                                                  | Major             | Minor          | Major           | Minor                                  |
| Blocked Culverts                                                  | Greater than 20% of end area blocked                           | 20% or less of end area blocked                  | 0                 | 1 per pay unit | Rework          | Rework if greater than 1 minor defects |
| Damaged Culvert inlet/outlets                                     | Greater than 20% of end area blocked                           | 20% or less of end area blocked                  | 0                 | 0              | Rework          | Repair                                 |
| Impeded flow for ditches, inlet/outlet channels, and catch basins | Water will be diverted out of the drainage structure or system | <20% impeded, but water will stay in the channel | 0                 | 3 per pay unit | Rework          | Rework if greater than 3 minor defects |
| Debris on Road produced by Service Provider operations            | Any debris in traveled way                                     | N/A                                              | 0                 | N/A            | Rework          | N/A                                    |

|                           |                                                             |                                                           |    |                       |                 |                                        |
|---------------------------|-------------------------------------------------------------|-----------------------------------------------------------|----|-----------------------|-----------------|----------------------------------------|
| Aggregate Surface Quality | Gradation of surface aggregate is degraded by more than 10% | Gradation of surface aggregate is degraded by 10% or less | 0  | 50 Feet per 1000 feet | Rework/ Replace | Rework if greater than 1 minor defects |
|                           |                                                             |                                                           | 17 |                       |                 |                                        |

|            |                                                                                                                |                                                                                                                              |   |     |                      |                         |
|------------|----------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|---|-----|----------------------|-------------------------|
| Backslopes | Undercut backslope will result in of slope                                                                     | Undercut backslope will not result in destabilization of slope                                                               | 0 | 0   | Repair and Stabilize | Re-vegetate             |
| Vegetation | Woody vegetation within 5 feet of the inlet end of drainage structures or in ditches that interferes with flow | Low growing vegetation within 5 feet or more of inlet of drainage structures or in ditches that does not interfere with flow | 0 | N/A | Remove               | Remove / Leave in place |



SECTION 842 – ROADWAY VEGETATION MAINTENANCE842.01

## SERVICE REQUIRED:

Cutting all vegetative growth, including trees and other vegetation less than 5 inches in diameter measured 6 inches above the ground, on roadway surfaces and roadsides to include sand routes. All vehicles/equipment shall have a red or orange flag (8" x 12") displayed 9 feet above the ground when performing service on sand routes.

842.02

## PERFORMANCE STANDARD:

## A. General

1. Brush, trees and other vegetation are cut within each area treated to a maximum height of 6 inches above the ground surface or obstruction such as rocks or existing stumps. All limbs which extend into the clearing limits, or over the roadbed, to a height of 14 feet above the traveled way surface elevation have been removed.
2. Items to remain will be DESIGNATED ON THE GROUND.
3. Self-propelled equipment is not allowed on cut and fill slopes or in ditches.
4. Trees within the cutting limits, but outside the roadbed and ditch, which are over 5 inches measured at 6 inches above the ground have been limbed in lieu of cutting.
5. Limbed trees have limbs cut within 4 inches of the trunk.
6. There is minimal or no damage to trunks of remaining trees.

## B. Cutting Side Vegetation

1. The treated area includes the road bed measured from the center line to each defined road edge, or to the bottom of the ditch on ditched road segments, plus an additional 10 feet on each side. Where there is no defined road edge or ditch, the treated area extends 20 feet from each side of the road center line.
2. Transitions between differing increments of cutting width have tapered lengths of not less than 50 feet and not more than 70 feet.

## C. Debris

1. Materials resulting from the cutting operation in excess of 12 inches in length or 1 inch in diameter do not remain on roadway slopes within the treated area, in ditches, or within water courses.
2. Limbs and chunks in excess of 3 inches in any dimension do not remain on the traveled way or shoulders.

842.03

**LOCATION OF WORK:**

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or ordered by the Contracting Officer.

842.04

## Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

842.05 PAYMENT:

- A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 842 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this section.

Pay ItemPay Unit

842(1)                      Cutting Roadway Vegetation

Mile

842.06 - ACCEPTABLE QUALITY LEVELS:

| Description                 | Major Defect                                                                                               | Minor Defect                                                                                        | Allowable Defects |                 | Required Action |                                        |
|-----------------------------|------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|-------------------|-----------------|-----------------|----------------------------------------|
|                             |                                                                                                            |                                                                                                     | Major             | Minor           | Major           | Minor                                  |
| Tree damage                 | Damage to more than 30% of the tree bole                                                                   | Damage to less than 30% of the tree bole                                                            | 2 per pay unit    | 5 per pay unit  | Remove or treat | Treat                                  |
| Horizontal Clearance        | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 0 per pay unit  | Rework          | Rework                                 |
| Vertical Clearance          | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Height above ground surface | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                   | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Drainage                    | Impeded flow or water diverted out of drainage structures                                                  | 20% or less impeded, but water will stay in the channel                                             | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Oversized Material          | Concentrations of material greater than 3" in any dimension remaining on traveled way or shoulders         | Isolated pieces of material greater than 3" in any dimension remaining on traveled way or shoulders | 0 per pay unit    | 10 per pay unit | Rework          | Rework if greater than 2 minor defects |
|                             | Material greater than 1" diameter and 12" in length remaining on roadway slopes, ditches or water courses. | N/A                                                                                                 | 0 per pay unit    | N/A             | Rework          | N/A                                    |

|                      |                                                                                                                    |                                                                                                                    |                |                |                                  |                                  |
|----------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|----------------|----------------|----------------------------------|----------------------------------|
| Work Area Management | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | 0 per pay unit | 0 per pay unit | Suspend work until in compliance | Suspend work until in compliance |
|----------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|----------------|----------------|----------------------------------|----------------------------------|

#### SECTION 842A – ROADWAY VEGETATION MAINTENANCE

##### 842A.01

##### SERVICE REQUIRED:

Cutting all vegetative growth, including trees and other vegetation less than 5 inches in diameter measured 6 inches above the ground, on roadway surfaces and roadsides to include sand routes. All vehicles/equipment shall have a red or orange flag (8" x 12") displayed 9 feet above the ground when performing service on sand routes.

##### 842A.02

##### PERFORMANCE STANDARD:

##### A. General

1. Brush, trees and other vegetation are cut within each area treated to a maximum height of 6 inches above the ground surface or obstruction such as rocks or existing stumps. All limbs which extend into the clearing limits, or over the roadbed, to a height of 14 feet above the traveled way surface elevation have been removed.
2. Items to remain will be DESIGNATED ON THE GROUND.
3. Self-propelled equipment is not allowed on cut and fill slopes or in ditches.
4. Trees within the cutting limits, but outside the roadbed and ditch, which are over 5 inches measured at 6 inches above the ground have been limbed in lieu of cutting.
5. Limbed trees have limbs cut within 4 inches of the trunk.
6. There is minimal or no damage to trunks of remaining trees.

##### B. Cutting Side Vegetation

1. The treated area includes the road bed measured from the center line to each defined road edge, or to the bottom of the ditch on ditched road segments, plus an additional 5 feet on each side. Where there is no defined road edge or ditch, the treated area extends 15 feet from each side of the road center line.
2. Transitions between differing increments of cutting width have tapered lengths of not less than 50 feet and not more than 70 feet.

#### C. Debris

1. Materials resulting from the cutting operation in excess of 12 inches in length or 1 inch in diameter do not remain on roadway slopes within the treated area, in ditches, or within water courses.
2. Limbs and chunks in excess of 12 inches in any dimension do not remain on the traveled way or shoulders.

#### 842A.03

##### LOCATION OF WORK:

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or ordered by the Contracting Officer.

#### 842A.04

##### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

#### 842A.05 PAYMENT:

- A. The accepted quantities will be paid at the contract price per unit of measurement for the Section 842 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this section.

#### Pay Item

#### Pay Unit

842A(1)

Cutting Roadway Vegetation

Mile

842A.06 - ACCEPTABLE QUALITY LEVELS:

| Description                 | Major Defect                                                                                               | Minor Defect                                                                                         | Allowable Defects |                 | Required Action |                                        |
|-----------------------------|------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|-------------------|-----------------|-----------------|----------------------------------------|
|                             |                                                                                                            |                                                                                                      | Major             | Minor           | Major           | Minor                                  |
| Tree damage                 | Damage to more than 30% of the tree bole                                                                   | Damage to less than 30% of the tree bole                                                             | 2 per pay unit    | 5 per pay unit  | Remove or treat | Treat                                  |
| Horizontal Clearance        | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                    | 0 per pay unit    | 0 per pay unit  | Rework          | Rework                                 |
| Vertical Clearance          | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                    | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Height above ground surface | More than 20% not cleared to limits                                                                        | 20% or less not cleared to limits                                                                    | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Drainage                    | Impeded flow or water diverted out of drainage structures                                                  | 20% or less impeded, but water will stay in the channel                                              | 0 per pay unit    | 1 per pay unit  | Rework          | Rework                                 |
| Oversized Material          | Concentrations of material greater than 12" in any dimension remaining on traveled way or shoulders        | Isolated pieces of material greater than 12" in any dimension remaining on traveled way or shoulders | 0 per pay unit    | 10 per pay unit | Rework          | Rework if greater than 2 minor defects |
|                             | Material greater than 1" diameter and 12" in length remaining on roadway slopes, ditches or water courses. | N/A                                                                                                  | 0 per pay unit    | N/A             | Rework          | N/A                                    |

|                      |                                                                                                                    |                                                                                                                    |                |                |                                  |                                  |
|----------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|----------------|----------------|----------------------------------|----------------------------------|
| Work Area Management | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | Not following approved safety plan which may include signs, flaggers, and other temporary traffic control measures | 0 per pay unit | 0 per pay unit | Suspend work until in compliance | Suspend work until in compliance |
|----------------------|--------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|----------------|----------------|----------------------------------|----------------------------------|

### 851 HAZARD AND OBSTRUCTION REMOVAL

#### 851.01

##### Service Required

Remove and/or stabilize hazards and obstructions.

#### 851.02

##### Performance Standard

Work is complete when hazards have been removed or stabilized and when the road is passable by the intended traffic.

#### 851.03

##### Location of Work

As specified on roads listed on the ROAD LISTING, SHOWN ON THE PLANS, or ordered by the Contracting Officer.

#### 851.04

##### Measurement

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

A. Mile: Work activity will be measured along the centerline of the road regardless of the number of lanes.

#### 851.05

##### Payment

A. Payment will be made under:

##### Pay Item

851(4) Hazard or Obstruction Removal

##### Pay Unit

Each

#### 851.06 -Acceptable Quality Levels

| Description                                                                                               | Major Defect                                                   | Minor Defect                                             | Allowable Defects |                | Required Action                                           |                                        |
|-----------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|----------------------------------------------------------|-------------------|----------------|-----------------------------------------------------------|----------------------------------------|
|                                                                                                           |                                                                |                                                          | Major             | Minor          | Major                                                     | Minor                                  |
| Utilization of Timber                                                                                     | Log lengths do not meet utilization standards (see BPA Call)   | N/A                                                      | 0                 | N/A            | Charge for loss of stumpage or Recut to acceptable length | N/A                                    |
| Stump Heights                                                                                             | Exceed Specified Height by more than 12 inches                 | Exceed Specified Height by up to 6 inches                | 0 per pay unit    | 2 per pay unit | Rework                                                    | Rework if greater than 4 minor defects |
| Tree damage caused by Service Provider's operations                                                       | Damage to more than 30% of the tree bole                       | Damage to 30% or less of the tree bole                   | 0 per pay unit    | 0 per pay unit | Remove or Treat                                           | Treat                                  |
| Impeded flow for ditches, inlet/outlet channels, and catch basins caused by Service Provider's Operations | Water will be diverted out of the drainage structure or system | 20% or less impeded, but water will stay in the channel. | 0                 | 2 per pay unit | Rework                                                    | Rework if greater than 2 minor defects |
| Hazards that interfere with the use of the road                                                           | Unstable hazards that remain in the Clearing Limits            | N/A                                                      | 0                 | N/A            | Rework                                                    | N/A                                    |

|                      |                                                                                                                  |                                                                      |   |                |                                  |                                       |
|----------------------|------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------|---|----------------|----------------------------------|---------------------------------------|
| Log Out              | Horizontal clearance - more than 20% not cleared to specified distance                                           | Horizontal clearance - 20% or less not cleared to specified distance | 0 | 1 per pay unit | Rework                           | Rework if greater than 1 minor defect |
|                      | Vertical clearance -more than 20% not cleared to specified distance                                              | Vertical clearance - 20% or less not cleared to specified distance   | 0 | 1 per pay unit | Rework                           | Rework if greater than 1 minor defect |
| Work Area Management | Not following approved safety plan which may include signs, flaggers, & other temporary traffic control measures | N/A                                                                  | 0 | 0              | Suspend work until in compliance | N/A                                   |

SECTION 881 – MOBILIZATION / EQUIPMENT MOVING881.01

## SERVICE REQUIRED:

- A. Mobilization of personnel, equipment, and material to the project site.
- B. Moving of equipment outside the established work schedule as ordered.

881.02

## PERFORMANCE STANDARD:

- A. Mobilization is complete when 100% of the personnel, equipment, and materials necessary to complete the work have been moved to the project site.
- B. Moving is complete when the contractor has moved from the present work site to the ordered work site and returned to the previous location.

881.03

## LOCATION OF WORK:

As specified on roads listed on the ROAD LISTINGS, SHOWN ON THE PLANS, or as ordered by the Contracting Officer.

881.04

## MEASUREMENT:

Measurement under this Section will be made by the total number of units for each item listed in the SCHEDULE OF ITEMS completed and accepted.

- A. Mile: Work activity will be measured along the shortest feasible route to the nearest one (1) mile, from the starting location on the move, to the ordered work site.

881.05

## PAYMENT:

- A. The accepted quantities will be paid at the contract price per unit of measurement for Section 881 pay items listed in the schedule of items. Payment will be full compensation for the work prescribed in this Section.

Pay Item

881 Mobilization:

Sum 881(2) Mobilization: = \$10,000 - \$25,000

Sum 881(3) Mobilization: &gt; \$25,000 - \$50,000

Sum 881(4) Mobilization: &gt; \$50,000

Sum

Pay Unit

Lump

Lump

Lump

Lump

881.06

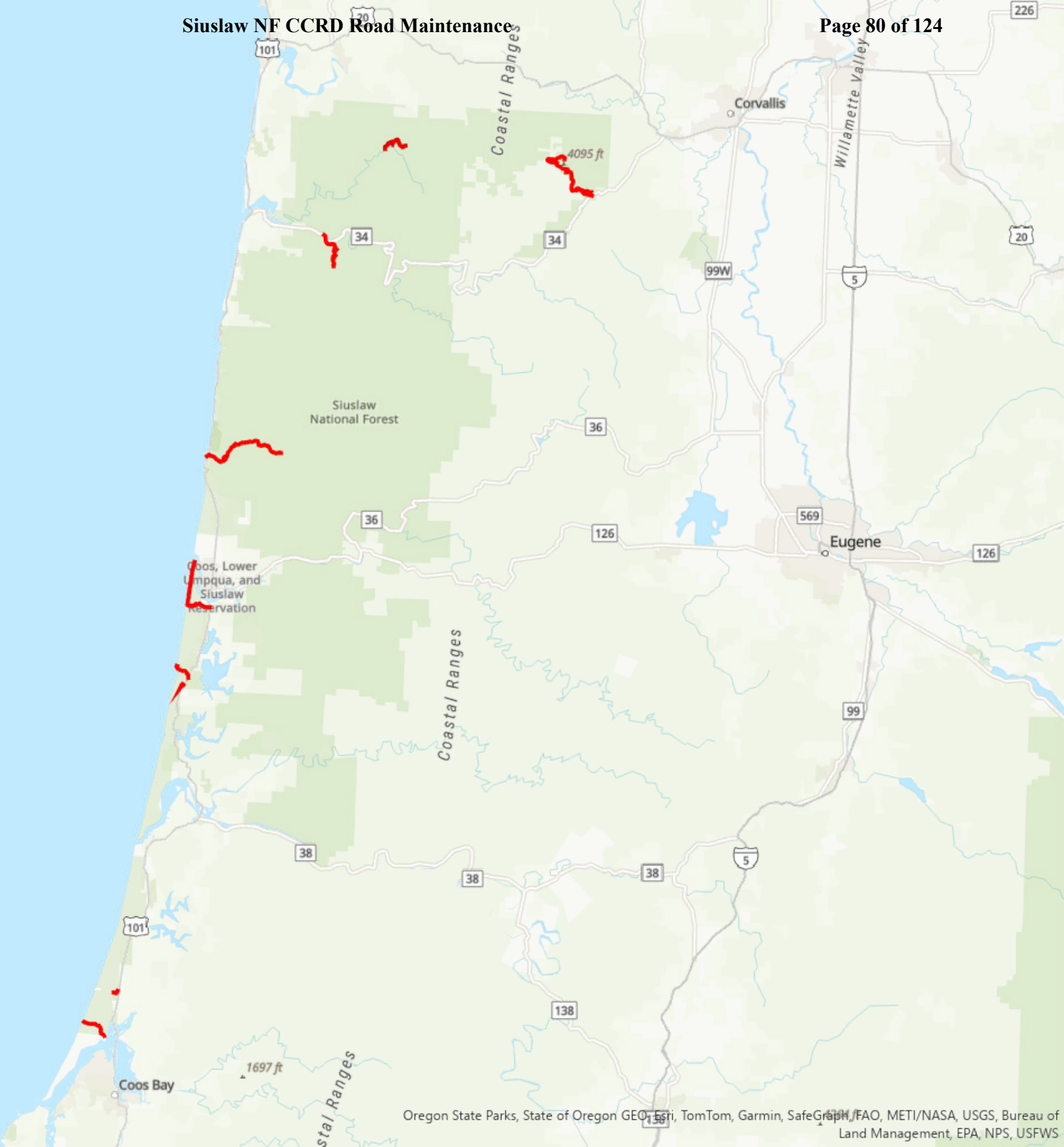
## Acceptable Quality Levels:

- A. Mobilization is acceptable when all equipment, personnel, and materials are moved to the project site and work has been started.
- B. Ordered moves shall be completed within designated hours, unless agreed otherwise.

- C. Service Provider shall meet the requirements in contract section H for equipment cleaning and weed prevention included in this contract.

| Description | Major Defect | Minor Defect | Allowable Defects |       | Required Action |       |
|-------------|--------------|--------------|-------------------|-------|-----------------|-------|
|             |              |              | Major             | Minor | Major           | Minor |

|                                                   |                                                                                                                 |                                                     |   |     |                                                                                    |                                                          |
|---------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|---|-----|------------------------------------------------------------------------------------|----------------------------------------------------------|
| Weed free equipment                               | Equipment not weed free.                                                                                        | N/A                                                 | 0 | N/A | Equipment rejected until it can be made weed free                                  | N/A                                                      |
| Ordered movement of equipment                     | Equipment not moved within designated time                                                                      | N/A                                                 | 0 | N/A | Reduce unit cost by X for X amount of time over designated time                    | N/A                                                      |
| Equipment meets all state and federal regulations | Does not meet state and federal regulations                                                                     | N/A                                                 | 0 | N/A | Bring equipment up to state and federal regulations or replace equipment           | N/A                                                      |
| Equipment leaks                                   | Equipment leaks in sensitive areas or leaks that are large and not typically inherent in the specific equipment | Small leaks inherent in the specific type equipment | 0 | N/A | Replace equipment and restore affected site as directed by the Contracting Officer | Place absorbent pads under equipment when not operating. |



**ADDENDUM TO FAR 52.212-3****EMPLOYMENT OF ELIGIBLE WORKERS****WORKFORCE CERTIFICATION**

Contractors are required to provide certification under this solicitation in compliance with the Migrant and Seasonal Agricultural Workers Protection Act (MSPA) and Farm Labor Contractor (FLC) Certificate of Registration requirements describing the workforce they will utilize to fulfill the contract requirements under this solicitation and any resulting contract. If the Contractor will supply workers under the H-2B Program, the Contractor is required to provide a copy of the Temporary Employment Certificate issued by DOL.

Subcontractors are bound by the same requirements for licenses and permits under this contract. **If a Prime Contractor identifies a Subcontractor as part of their workforce to accomplish the work under this solicitation, the Prime Contractor shall submit the Subcontractor's signed certification with their response to the solicitation.**

**H-2B Workers:** (<http://www.foreignlaborcert.doleta.gov/>)

- ☐ Company certifies it will not be utilizing H2B Workers under any resulting contract of this solicitation.  
☐ Company will be utilizing H2B Workers (under any resulting contract of this solicitation. Provide a copy of Temporary Employment Certificate.)

**MSPA Workers:** (<http://www.dol.gov/whd/mspa/>)

- ☐ Company certifies it will not be utilizing MSPA workers under any resulting contract of this solicitation.  
☐ Certifies has valid FLC certificate of registration. (Attach a copy of current certification.)

Authorization includes:

- ☐ Transporting workers  
☐ Driving  
☐ Housing workers

- ☐ Company has applied for certificate of registration on \_\_\_\_\_.

Contractors not currently having obtained a certificate (for each partner, if partnership) will be requested to furnish proof of having obtained a certificate prior to award of contract. Partnerships must furnish proof of registration of their assumed business name, if any, with the State of registration.

State of \_\_\_\_\_ No. \_\_\_\_\_

**I, on behalf of said Company, certify to the above responses.**

\_\_\_\_\_  
(Signature) (Date)

\_\_\_\_\_  
(Printed Name) (Title)

**END of ADDENDUM TO FAR 52.212-3**

## MIGRANT AND SEASONAL AGRICULTURAL WORKER PROTECTION ACT (MSPA)

<https://www.dol.gov/agencies/whd/agriculture/mspa>

This attachment shall be incorporated into any BPA Call that employs MSPA-protected employees.

### Employment of Eligible Workers

#### 1. *General*

This contract is subject to the Migrant and Seasonal Agricultural Worker Protection Act (MSPA), 29 United States Code (U.S.C) 1801-1872, and to the U.S. Department of Labor (DOL) regulations implementing MSPA 29 Code of Federal Regulations (CFR) Part 500. MSPA eliminates activities detrimental to migrant and seasonal agricultural workers, requires registration of Farm Labor Contractors, and ensures necessary protection for the workers. Information regarding MSPA can be found at: <http://www.dol.gov/whd/mspa/index.htm>

If workers are hired under the H-2B program, (8 CFR Section 274A provisions of the Immigration and Nationality Act (INA) for the admission of nonimmigrants to the U.S. to perform temporary labor or services) a Temporary Employment Certification issued by the Office of Foreign Labor Certification (OFLC) in the Department of Labor Employment and Training Administration is required.

For further information on the requirements of the H-2B program, visit OFLC's website:

<http://www.foreignlaborcert.doleta.gov/>

U.S. DOL's Wage and Hour's website:

<https://www.dol.gov/agencies/whd/immigration/h2b/2015-final-rule>

Compliance with MSPA and the INA is a material condition of this contract. If the contractor employs any unauthorized worker(s) during the performance of this contract that violates section 274A of the INA, the Government may terminate the contract, in addition to other remedies or penalties prescribed by law.

#### 2. *Definitions*

- a. H-2B worker: as used in this part means a nonimmigrant holding a visa authorizing the individual to legally work in the US to perform temporary labor or services. A worker with an H-2B visa (H-2B worker) may also be considered a migrant agricultural worker under MSPA depending on the type and nature of work performed.

- b. Migrant Agricultural Worker and Seasonal Agricultural Worker: as used in this part means individuals employed for agricultural (including forestry) work on a seasonal or temporary basis.
- A worker, moving from one seasonal activity to another, is employed on a seasonal basis even though the worker may continue to be employed during a major portion of the year.
  - An overnight absence from the migrant workers permanent place of residence is required.
  - Members of the contractor's immediate family are not considered migrant or seasonal workers. Immediate family includes:
    1. Spouse
    2. Children, stepchildren, or foster children
    3. Parents, stepparents, or foster parents, or
    4. Brothers and sisters
- c. Farm Labor Contractor (FLC). As used in this part means a person including an individual, partnership, association, joint stock company or a corporation, who, for any money or other valuable consideration, paid or promised to be paid, performs any recruiting, soliciting, hiring, employing, furnishing, or transporting of any migrant or seasonal agricultural worker.

3. ***Registration Requirements***

- a. Any contractor providing or hiring H-2B nonimmigrants for work under this contract shall provide a copy of their Temporary Employment Certificate. General information about the H-2B program can be found on Fact Sheet # 78 at <http://www.dol.gov/whd/regs/compliance/whdfs78.htm>. Contractors can apply for the certificate through the US DOL Employment & Training Administration's on line iCERT Visa Portal System at <https://www.foreignlaborcert.doleta.gov/h-2b.cfm> or by paper application.
- b. Any contractor who meets the definition in (2.c.) above providing or hiring migrant or seasonal workers to perform agricultural or manual forestry work shall first obtain a Federal DOL Farm Labor Contractor Certificate of Registration (<https://www.dol.gov/agencies/whd/forms/wh530>). The contractor shall carry the certificate at all times while engaged in contract performance and shall display it upon request. Any of the contractor's employees who perform any one or more of the activities defined as an FLC in paragraph (2.c.) must have their own FLC Employee Certificate. General information about MSPA can be found on Fact Sheet #49 at DOL Wage and Hour Divisions webpage <http://www.dol.gov/whd/regs/compliance/whdfs49.htm>.

4. ***Certifications***

The Contractor shall provide applicable H-2B Temporary Employment Certificate and/or Farm Labor Contractor Certificate as part of their representations, certifications, and acknowledgements. Subcontractor(s) meeting the definitions

above shall follow the same requirements as the Prime Contractor. It is the Prime Contractor's responsibility to ensure the Subcontractor's information is provided to the Contracting Officer.

5. ***Worker Protections***

a. Worker Information Posters

- A contractor who uses the H-2B program to meet its temporary employment needs must post and maintain the H-2B poster (WH-1505) in a conspicuous location accessible to workers at the job site.
- The contractor shall display and maintain the MSPA poster (WH-1376) on the job site in a conspicuous location accessible to workers during the contract performance period.

b. Personal protective equipment

- 29 CFR 1910 Subpart I, OSHA's General Industry personal protective equipment (PPE) standard contains the general requirements for the provision of personal protective equipment and requires employers to perform a hazard assessment to select appropriate PPE for hazards that are present or likely to be present in the workplace. OSHA requires that many categories of personal protective equipment meet or be equivalent to standards developed by the American National Standards Institute (ANSI).
- Before a worker begins operating equipment, the contractor shall train the workers on the safe operation and use of the equipment
- The contractor shall provide the appropriate personal protective equipment for the work required to be performed in the contract, wherever necessary by reason of hazards or processes encountered that may cause injury or impairment in the function of any part of the body. Except for foot protection, all PPE must be provided by the employer at no cost to the employee. Includes:
  1. Head Protection
  2. Hearing Protection
  3. Eye/Face Protection
  4. Leg Protection
  5. Foot Protection
  6. Hand Protection
- PPE must be sanitary and in reliable condition. Do not use defective or damaged PPE. PPE must be inspected prior to use on each work shift to ensure it is in serviceable condition.

- A checklist of applicable PPE guidelines typical for the work performed under this contract is provided. This does not relieve the contractor of the responsibility of performing a risk assessment or providing the necessary PPE for their operations.

Reference

<https://www.osha.gov/SLTC/personalprotectiveequipment/index.html>  
or OSHA 3151-12R 2003 Personnel Protective Equipment Booklet.

The booklet can be found at:

<https://www.osha.gov/Publications/osha3151.pdf>

Manual Logging and Forestry Related activities:

[https://www.osha.gov/SLTC/etools/logging/manual/logger/personal\\_equip.html](https://www.osha.gov/SLTC/etools/logging/manual/logger/personal_equipment.html)

General Machine and Vehicles Logging and Forestry Related activities:

<https://www.osha.gov/SLTC/etools/logging/mechanical/machines.html>

c. Field Sanitation.

OSHA established minimum standards for field sanitation in covered agricultural settings. Refer to Fact Sheet # 51 Field Sanitation Standards under the Occupational Safety and Health Act.

6. ***Employment Requirements***

Fact Sheets with relevant information may be found at:

<http://www.dol.gov/WHD/fact-sheets-index.htm>

- a. Contractors employing workers in forestry related work are required to comply with wage and payroll standards and recordkeeping requirements. Refer to Fact Sheet #63: Application of Federal Labor Laws to Reforestation found on the DOL Wage and Hour Division webpage.
- b. Contractor Employee List. Contractors are required to maintain and provide upon request an active list of all employees performing work on the job site under this contract. The Employee List will identify employees by full name (aliases), supervisory duties if applicable, and appropriate labor Occupation Code for work performed under the Service Contract Act Wage Rates applicable to this contract. If Subcontractors are utilized, all tiers of subcontractor(s) are responsible for providing the same information for their employees to the Prime for submittal to the Contracting Officer.

7. ***Transportation***

- a. The contractor shall be registered to transport employees, unless employees provide their own transportation or carpool by their own arrangement in one of their own vehicles. Authorization for each vehicle

that will be used to transport employees must appear on the contractor's certificate. If the contractor directs or requests employees to carpool, the registration requirement is applicable. Any driver, who transports workers for a fee or at the direction of the contractor, shall be registered as an FLC or an FLC employee.

- b. See Fact Sheet #50: Transportation under the MSPA, for more information about the vehicle safety standards, driver's licensing requirements, and vehicle insurance requirements. Note that separate transportation requirements may apply if there are H-2B workers.

## 8. *Housing*

- a. The authorization to furnish housing, other than commercial lodging certified by a health authority or other appropriate agency, must appear on the contractor's certificate. Contractors should contact their local Wage and Hour Division of the DOL for further information on the requirements of the Act.
- b. **Camping Requirements.** The Forest Service (FS) has various camping opportunities. Check with local FS unit for camping requirements, camping permits may be required. Verify local fire restriction policies. If camps will be used to house workers subject to MSPA, they are also subject to the temporary labor camp standards at 29 CFR 1910.142. The Forest Service reserves the right to terminate a camping permit at any time. These requirements are in addition to those contained in or provided for under any other applicable clause in this contract. Any violation of these conditions constitutes a breach of contract and may result in revocation of camping approval.
  - Every structure used as shelter must provide protection from the elements. Where adequate heat is not provided, make other arrangements to protect workers from the cold. Cut firewood only after a District Firewood Permit is obtained.
  - The campsite must not encroach beyond the boundaries designated by the Forest Service. The campsite location must minimize impacts on streams, lakes, and other bodies of water. Camping is not permitted within developed recreational sites or along primary recreational roads.
  - The campsite must have a clean appearance at all times. Upon abandonment of any campsite, or termination, revocation, or cancellation of camping privileges, the contractor shall remove, within 10 calendar days, all structures and improvements except those owned by the United States, and shall restore the site, unless otherwise agreed upon in writing or in the camping permit. Structures or improvements the contractor fails to remove within the 10 calendar day period becomes the property of the United States, however, the contractor remains liable for the cost of the removal and restoration of the site.

- Unless otherwise designated by the CO, the use of the area is not exclusive and may be granted to other permittees, contractors, or recreating public. Disorderly conduct is not permitted.
- Damaging or removing any natural feature or other property of the Forest Service is prohibited.
- Servicing of equipment in the campsite is not permissible unless the campsite is within the project area.
- Provide sanitary facilities for storing food. Provide ice chests or coolers, with ice supply made from potable water, and replenish as necessary. Provide sufficient storage for perishable food items.
- Provide an adequate and convenient potable water supply in each camp for drinking and cooking purposes.
- Provide adequate toilet facilities and toilet paper for the capacity of the camp. Service and maintain facilities in a sanitary condition.
- Collect, store, and dispose of garbage in a manner to discourage rodent access, minimize attraction of flies, and prevent scattering by wind
- Maintain basic first aid supplies available, which must be under the charge of a person trained to administer first aid.

The basic supplies must include:

- Gauze pads (at least 4x4 inches)
  - Two large gauze pads (at least 8x10 inches)
  - Box adhesive bandages (such as band-aids)
  - One package of gauze roller bandage (at least 2-inches in width)
  - Two triangular bandages
  - Scissors
  - At least one blanket
  - Tweezers
  - Adhesive tape
  - Medical gloves, (latex or non-latex equivalent), and
  - Resuscitation device such as resuscitation bag, airway, or pocket mask.
- Wash laundry in such a way that washing and rinsing will not pollute lakes, streams, or other flowing water.
  - Dispose waste water away from living and eating areas and in such a way that minimizes pollution to lakes, streams, and other flowing water.
  - The contractor shall take all reasonable precautions to prevent and suppress forest fires. Do not dispose of material by burning in open

fires during the closed season established by law or regulation without the written permission from the Forest Service.

- If authorized to have an open fire, the Contractor shall comply with the following fire regulations:
  1. A shovel, axe or Pulaski, a 10-quart pail, which is full of water for immediate use, and a fire extinguisher with an Underwriters Laboratory (UL) rating of at least 1:A 10:BC is required.
  2. All fire rings or outside fireplaces must be approved by the Forest Service representative. The area must be cleared down to mineral soil for a distance of one foot outside of the ring or fireplace, and it must not have any overhanging material. Fire rings must be dismantled and material disposed prior to leaving the site.
  3. All generators and other internal combustion engines must be equipped with Forest Service approved spark arrestors and/or factory designed muffler and exhaust system in good working order. They will be located in a cleared area with the same requirements as in described in the previous paragraph.
  4. All fuel must be stored in UL approved flammable storage containers and be located at least 50 feet from any open flame or other source of ignition.

*End of MSPA attachment.*

**Permits**

The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits, and for complying with any Federal, State, and municipal laws, codes, and regulations applicable to the performance of the work. The Contractor shall also be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence. The Contractor shall also be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

**Note:** This does not preclude expected quoter to be supplied any or all known regulatory certifications, permits, etc. to legally conduct stewardship work under this request for quote, should award be made. All expected quoters are encouraged to know the Federal and local prevailing labor laws and inspection standards for stewardship work within the State in which award is to be made. This is to include all known Farm Labor permits and timely submission for H2B-1 and Migrant Seasonal Worker Protection personnel. All posters and mandatory DOL and OSHA inspection criteria to be posted within the public work area for all workers free access may be obtained from DOL and OSHA via online downloads. The Government does not guarantee access nor full distribution of these items to the prospective awarded contractor.

This solicitation implements two FAR class deviations to ensure compliance with Executive Orders 14148, 14173, 14168 and 14208, issued since January 20, 2025. These deviations reflect recent policy updates and remove outdated requirements, as outlined below.

The following FAR provisions and clauses are hereby removed in their entirety from the IDIQ/BPA:

- 52.222-21 Prohibition of Segregated Facilities
- 52.222-22 Previous Contracts and Compliance Reports
- 52.222-23 Notice of Requirement for Affirmative Action To Ensure Equal Employment Opportunity for Construction
- 52.222-24 Preaward On-Site Equal Opportunity Compliance Evaluation
- 52.222-25 Affirmative Action Compliance
- 52.222-26 Equal Opportunity
- 52.222-27 Affirmative Action Compliance Requirements for Construction
- 52.222-29 Notification of visa denial
- 52.223-10 Waste Reduction Program (MAY 2024)
- 52.223-19 Compliance with Environmental Management Systems (MAY 2011)
- 52.223-22 Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation (DEC 2016)
- 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026\*

\*This provision was removed to comply with the Executive Order titled *"Additional Rescissions of Harmful Executive Orders and Actions,"* dated March 14, 2025.

The following FAR clauses now include deviations to align with recent Executive Orders:

- ~~52.204-8 Annual Representations and Certifications (JAN 2025) (DEVIATION FEB 2025)~~
- **52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025)**
- **52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)**
- ~~52.223-1 Biobased Product Certification (MAY 2024) (DEVIATION FEB 2025)~~
- ~~52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025)~~
- ~~52.223-10 Waste Reduction Program (MAY 2024) (DEVIATION FEB 2025)~~
- ~~52.223-23, Sustainable Products and Services (MAY 2024 (DEVIATION FEB 2025))~~

The following references to AGAR Clauses and Provisions are hereby removed to comply with AGAR Rule 2024-22463 (89 FR 81014):

- AGAR 452.215-73 Post Award Conference (NEV 1996) /2
- AGAR 452.216-74 (FEB 1988) (Applicable to Time-and-Materials/Labor Hour BPA Calls)
- AGAR 452.219-70 Size Standards and NAICS Code Information (SEP 2001) /2
- AGAR 452.228-70 Alternative Forms of Security (NOV 1996)
- AGAR 452.228-71 Insurance Coverage (NOV 1996)
- AGAR 452.236-77 Emergency Response (NOV 1996)
- AGAR 452.237-74 Key Personnel (FEB 1988) /2

2/ AGAR clauses and provisions that were included in full text have been retained, with only the AGAR reference removed.

The following AGAR clause is hereby included:

- AGAR 452.236-70 Emergency Response, Fire Suppression and Liability (NOV 2024)

All call orders will incorporate these changes by reference at award.

*Disclaimer: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.*

*In advancement of Section 2 of Executive Order 14208, the removal of requirements related to Executive Order 14057 eliminates all non-statutory sustainability requirements or preferences in purchases of food service wares, including paper straws. In addition to removing requirements related to Executive Order 14057, the attachment also reflects recent updates to Code of Federal Regulation citations for the U.S. Department of Agriculture's BioPreferred® Program, a statutory purchasing preference program.*

These class deviations will remain in effect until rescinded or incorporated into the FAR.

## FAR Overhaul | FAR Companion Guide

Oct 30, 2025

The Federal Acquisition Regulatory Council has released an update to the FAR Companion as part of the ongoing Revolutionary FAR Overhaul (RFO) Initiative, in accordance with [Executive Order 14275](#) and [OMB Memorandum M-25-26](#).

The following RFO update was posted on October 30, 2025:

- FAR Companion, Version 2.0, includes the initial release of FAR Companion (FC) parts 2, 3, 7, 13, 14, 15, 16, 17, 19, 20, 21, 22, 23, 24, 25, 27, 30, 32, 37, 41, 42, 44, 45, 47, 48, 52, and 53.
- Version 2.0 also includes updates to previously released content: update to FC 8.104 pertaining to “required use” contracts and providing more information and resources on Category Management, including beta version content of the Category Management Buying Guide; update to FC 8.401 pertaining to evaluation factors; updates to FC 8.401(b) and FC 12.301 removing references to debriefings; new annotation under FC 8.401(b) related to sole source justification content for FSS orders; new annotation under FC 12.001 related to contracting methods for commercial construction; update to FC 11.204 to clarify brand name or equal as distinct from brand name justifications under FAR 6.104; updates to thresholds referenced due to the October 1, 2025 inflation adjustment rule; various citation corrections throughout; and changed “Reserved” to “No additional guidance” when the FAR Companion does not provide any practice recommendations for that associated FAR part.
- FAR Companion, Version 2 is posted on [www.acquisition.gov/far-overhaul](http://www.acquisition.gov/far-overhaul).

To view the FAR Companion, Version 2.0. inclusive of all parts and updates, visit: [https://www.acquisition.gov/sites/default/files/page\\_file\\_uploads/far-companion.pdf](https://www.acquisition.gov/sites/default/files/page_file_uploads/far-companion.pdf)

To view all available rewritten FAR Parts and agency deviations, visit: <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>.

Stay informed. View the latest FAR Overhaul news and announcements at: <https://www.acquisition.gov/far-overhaul>.

Incorporate the mandatory contract clause FAR 52.222 90, Addressing DEI Discrimination by Federal Contractors (Apr 2026), as required by Executive Order 14398.

**Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions**

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

**52.252-2 Clauses Incorporated by Reference**

**Feb 1998**

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)  
☐ Alternate I (Nov 2025) of 52.212-4

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance.* Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes.* Changes will be handled in accordance with the following FAR clause(s):

☒ FAR 52.243-4, Changes (Nov 2025)

☒ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.222-50 Combating Trafficking in Persons (Nov 2025)

☐ Alternate I (Nov 2025) of 52.222-50

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

52.233-3 Protest After Award (Sep 2025)

52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)

52.240-91 Security Prohibitions and Exclusions (Nov 2025)

☐ Alternate I (Nov 2025) of 52.240-91

52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

**The following clauses are applicable if checked:**

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☒ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☒ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
  - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☒ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
  - ☐ Alternate III (Nov 2025) of 52.219-9.
  - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☒ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
  - ☒ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
  - ☒ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:

It is not a Wage Determination

| Employee Class    | Monetary Wage -- Fringe Benefits |
|-------------------|----------------------------------|
| Aircraft Mechanic | \$XX.XX                          |
|                   |                                  |
|                   |                                  |

- ☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☒ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
  - ☐ Alternate I (May 2008) of 52.223-9
- ☒ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services
- ☒ 52.224-3 Privacy Training (Jan 2017)
  - ☐ Alternate I (Jan 2017) of 52.224-3
- ☒ 52.225-1 Buy American-Supplies (Nov 2025)
  - ☒ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
  - ☐ Alternate II (Nov 2025) of 52.225-3.
  - ☐ Alternate III (Nov 2025) of 52.225-3.
  - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☒ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☒ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☒ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)

- ☐ 52.240-92 Security Requirements (Nov 2025)
  - ☐ Alternate II (Nov 2025) of 52.240-92
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (Nov 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
  - ☐ Alternate I (Apr 2023) of 52.247-64.
  - ☐ Alternate II (Nov 2021) of 52.247-64

**The Contractor shall comply with the following FAR Clauses for Commercial Construction.**

- 52.222-6 Construction Wage Rate Requirements
- 52.222-7 Withholding of Funds
- 52.222-8 Payrolls and Basic Records
- 52.222-9 Apprentices and Trainees
- 52.222-10 Compliance with Copeland Act Requirements
- 52.222-11 Subcontracts (Labor Standards)
- 52.222-12 Contract Termination-Debarment
- 52.222-14 Disputes Concerning Labor Standards
- 52.222-15 Certificate of Eligibility
- 52.236-5 Material and Workmanship

The following clauses are applicable when checked:

- ☒ 52.222-30 Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Pricing Method (Aug 2018)
- ☒ 52.222-31 Construction Wage Rate Requirements-Price Adjustment (Percentage Method) (Aug 2018)
- ☒ 52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
- ☒ 52.225-9 Buy American-Construction Materials (Nov 2025)
  - ☒ Alternate I (Oct 2022) of 52.25-9
- ☐ 52.225-11 Notice of Buy American Requirement-Construction Materials under Trade Agreements (Nov 2025)
  - ☐ Alternate I (Nov 2025) (of 52.225-11
  - ☐ Alternate II (Oct 2022) of 52.225-11
- ☒ 52.228-2 Additional Bond Security (Oct 1997)
- ☒ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
- ☒ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
- ☒ 52.228-13 Alternative Payment Protections (Jul 2020)
- ☒ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
- ☒ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
- ☒ 52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
- ☒ 52.236-2 Differing Site Conditions (Jul 2025)
- ☒ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)

- ☒ 52.236-6 Superintendent by the Contractor (Jul 2025)
- ☒ 52.236-7 Permits and Responsibilities (Jul 2025)
- ☒ 52.236-8 Other Contracts (Jul 2025)
- ☒ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
- ☒ 52.336-10 Operations and Storage Areas (Jul 2025)
- ☒ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
- ☒ 52.236-12 Cleaning Up (Jul 2025)
- ☒ 52.236-13 Accident Prevention (Jul 2025)
  - ☒ Alternate I (Nov 1991) of 52.236-13
- ☒ 52.236-14 Availability and Use of Utility Services (Jul 2025)
- ☒ 52.236-15 Schedules for Construction Contracts (Jul 2025)
- ☒ 52.236-16 Quantity Surveys (Jul 2025)
  - ☒ Alternate I (Apr 1984) of 52.236-16
- ☒ 52.236-17 Layout of Work (Jul 2025)
- ☒ 52.236-21 Specifications and Drawings for Construction (Jul 2025)
  - ☐ Alternate I (Apr 1984) of 52.236-21
  - ☐ Alternate II (Apr 1984) of 52.236-21
- ☒ 52.242-14 Suspension of Work (Apr 1984)
- ☒ 52.248-3 Value Engineering (Oct 2025)
  - ☐ Alternate I (Apr 1984) of 52.248-3

### **Other Applicable Clauses**

- 52.217-6 Option for Increased Quantity (Mar 1989)
- 52.217-7 Option for Increased Quantity - Separately Priced Line Item (Mar 1989)
- 52.217-8 Option to Extend Services (Nov 1999)
  - 30 calendar days prior to contract expiration
- 52.217-9 Option to Extend the Term of the Contract (Mar 2000)
  - (a) 30 Calendar days prior to contract expiration and 60 days
  - (c) five years and 6 months.
- 52.232-90 Fast Payment Procedures (Nov 2025)
- 52.245-1 Government Property (Sep 2021)
  - ☐ Alternate I (Sep 2021) of 52.245-1
- 52.245-2 Government Property Installation Operation Services (Apr 2012)
- 52.245-9 Use and Charges (Apr 2012)
- 52.246-15 Certificate of Conformance (Apr 1984)
- 52.247-29 F.O.B. Origin (Feb 2006)
- 52.247-34 F.O.B. Destination (Jan 1991)

### **AGAR Clauses**

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
2. Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

452.204-70 Modification for Contract Closeout (Nov 2025)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The

Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a "Contractor Release of Claims" and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(End of Clause)

#### 452.204-71 Personal Identity Verification of Contractor Employees (Nov 2025)

(a) The contractor shall comply with the personal identity verification (PIV) policies and procedures established by the United States Department of Agriculture (USDA) Directives 4620-002 series.

(b) Should the USDA Directives 4620-002 require the exclusion of a contractor's employee, the contracting officer will notify the contractor in writing. The contractor must appoint a representative to manage compliance with the PIV policies established by the USDA Directives 4620-002 and to maintain a list of employees eligible for a USDA LincPass required for performance of the work.

(c) The responsibility of maintaining a sufficient workforce remains with the contractor. Contractor employees may be barred by the Government from performance of work should they be found ineligible or to have lost eligibility for a USDA LincPass. Failure to maintain a sufficient workforce of employees eligible for a USDA LincPass may be grounds for termination of the contract.

(d) The contractor shall insert this clause in all subcontracts when the subcontractor is required to have routine unaccompanied physical access to a Federally controlled facility and/or routine unaccompanied access to a Federally controlled information system.

(e) The PIV Sponsor for this contract is a designated program point of contact, which in most cases is the COR, unless otherwise specified in this contract. The PIV Sponsor will be available to receive contractor identity information from [hours and days to be added by CO] to [hours and days to be added by CO] at [office address for registration to be added by CO]. The Government will notify the contractor if there is a change in the PIV Sponsor, the office address, or the office hours for registration; however, it is the contractor's responsibility to meet all aspects of paragraphs (c), (d), and (e).

(End of Clause)

#### 452.232-71 Progress Payments for Commercial Construction Contracts (Dec 2025)

(a) *Contractor entitlement to progress payments.* The Contractor may request progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished that meets the standards of quality established under the contract, as approved by the Contracting Officer.

(b) *Computation of amounts.* Progress payments will be authorized when the payment requested is properly due in accordance with this contract; the work will be performed in accordance with the contract; and there has been no impairment or diminution of the Government's security under this contract. The Contracting Officer may authorize consideration of:

3. Materials delivered on site and preparatory work;
4. Materials delivered to the Contractor at locations other than the site, if:
  - i. Specifically authorized by the contract; and
  - ii. The Contractor provides satisfactory evidence of title and intended use in the contract.

(c) *Contractor request for progress payments.* The Contractor's request for progress payments shall include the following:

1. An itemization of the amounts requested, related to the various elements of work required by the contract;
2. A listing of the amount included for work performed by each subcontractor;
3. A listing of the total amount of each subcontract;
4. A listing of the amounts previously paid to each subcontractor; and
5. Additional supporting data in a form and detail required by the Contracting Officer.

(d) *Contractor Certification.* Each request for progress payment shall be accompanied by the following certification:

I hereby certify, to the best of my knowledge and belief, that—

1. The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;
2. All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;
3. This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and
4. This certification is not to be construed as final acceptance of a subcontractor's performance.

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

(name)  
(title)  
(date)

(e) *Access for verification of payment entitlement.* To verify the Contractor's entitlement to progress payments under this contract, the Contractor shall provide the Government, upon request and during normal business hours, access to the following:

1. Records and Documentation:
  - (i) Certified progress payment requests and supporting documentation;
  - (ii) Subcontractor and supplier invoices, payment records, and lien waivers;
  - (iii) Updated schedule of values and progress schedules;
  - (iv) Quality assurance and inspection reports;
  - (v) Payroll records, if applicable under labor provisions.
2. Facilities and Worksite Access:
  - (i) Physical access to the construction site for inspection of work progress;
  - (ii) Access to off-site storage locations for materials billed but not yet incorporated into the work; or
  - (iii) Access to any fabrication facilities where contract-related work is being performed.
3. Access to electronic invoicing or project management systems used to track progress and payments, if such systems are used in contract performance.

(f) *Dates for payment.* A progress payment under this clause is a contract progress payment under the Prompt Payment clause of this contract, and except as provided in paragraph (g) of this clause, approved requests shall be paid within 30 days of submittal of a proper request for payment.

(g) *Liquidation of progress payments.* Progress payments shall be liquidated by deducting from the payment of each item the total unliquidated amount of progress payments made for that separately priced unit of that line item. The liquidation amounts for each line item shall be clearly delineated in each request for progress payment submitted by the Contractor.

(h) *Security for progress payments.* In the event the Contractor fails to provide adequate security as required in this contract, no progress payment shall be made under this contract. Upon receipt of adequate security, progress payments shall be made, including all previous payments to which the Contractor is entitled, in accordance with the terms of the contract. If at any time the Contracting Officer determines that the security provided by the Contractor is insufficient, the Contractor shall promptly provide such additional security as the Contracting Officer determines necessary. In the event the Contractor fails to provide such additional security, the Contracting Officer may collect or liquidate such security that has been provided, and suspend further payments to the Contractor; the Contractor shall repay to the Government the amount of unliquidated progress payments as the Contracting Officer at his sole discretion deems repayable.

(i) *Special terms regarding termination for cause.* If this contract is terminated for cause, the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments. The Government shall be liable for no payment except as provided by the Termination for Cause paragraph of the clause at Federal Acquisition Regulation 52.212-4, Contract Terms and Conditions—Commercial Products and Commercial Services.

(j) *Reservation of rights.*

1. No payment, vesting of title under this clause, or other action taken by the Government under this clause shall-

- (i) Excuse the Contractor from performance of obligations under this contract; or
- (ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

2. The Government's rights and remedies under this clause-

- (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
- (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(k) *Refund of unearned amounts.* If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

- 1. Notify the Contracting Officer of such performance deficiency; and
- 2. Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-
  - (i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or
  - (ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(l) *Retainage.* If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(m) *Title, liability, and reservation of rights.* All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

- 1. Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or
- 2. Waiving the right of the Government to require the fulfillment of all the terms of the contract.
- 3. The Government's rights and remedies under this clause-
  - (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and

- (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(n) *Reimbursement for bond premiums.* In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (l) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(o) *Final payment.* The Government shall pay the amount due the Contractor under this contract after-

1. Completion and acceptance of all work;
2. Presentation of a properly executed voucher; and
3. Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 ( [31 U.S.C.3727](#) and [41 U.S.C. 6305](#)).

(p) *Limitation because of undefinitized work.* Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. (End of clause)

### **Solicitation Information**

### **Evaluation and Basis for Award**

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

### **Technical Approach:**

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated:

- Ability of the offeror to meet the schedule requirements listed in the Statement of Work (SOW).
- Detailed explanation of any requirement listed in the SOW that cannot be successfully accomplished by the offeror.

**Price:**

The offeror shall provide pricing as requested in the Schedule of Items on page X of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

**Past Performance:**

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

**Evaluation Method:**

All quotations will be evaluated to identify the offeror presenting the most technically advantageous solution based on the stated evaluation criteria. Once the highest technically rated offeror is identified, their price will be evaluated to determine whether it is fair and reasonable. Past performance will also be assessed to ensure it is acceptable or neutral.

Award will be made to the offeror whose proposal is determined to be the highest technically rated, provided that:

- The proposed price is fair and reasonable, and
- Past performance is assessed as acceptable or neutral.

Award will not necessarily be made to the lowest-priced offeror. Award will be made to the contractor that offers the best value to the government.

**Other Information**

**52.252-1 Solicitation Provisions Incorporated by Reference****Feb 1998**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)
- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

**The following provisions are applicable if checked:**

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
  - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☒ 52.222-5 Construction Wage Requirements, Secondary Site of the Work (Nov 2025)
- ☒ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☒ 52.223-4 Recovered Material Certification (May 2008)
- ☒ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☒ 52.225-6 Trade Agreements-Certificate (Feb 2021)

- ☒ 52.225-10 Notice of Buy American Requirement- Construction Materials (May 2014)
  - ☐ Alternate I (May 2014) of 52.225-10
- ☐ 52.225-12 Notice of Buy American Requirement-Construction Materials under Trade Agreements (May 2014)
  - ☐ Alternate I (May 2014) of 52.225-12
  - ☐ Alternate II (Nov 2023) of 52.225-12
- ☒ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.228-1 Bid Guarantee (Sep 1996)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

**Other Applicable FAR Provisions**

- 52.217-5 Evaluation of Options (Nov 2025)
- 52.225-18 Place of Manufacture (Aug 2018)
- 52.233-2 Service of Protest (Sep 2025)

**AGAR Provisions**

- 452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
2. Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

"General Decision Number: OR20260001 01/23/2026

Superseded General Decision Number: OR20250001

State: Oregon

Construction Type: Highway

Counties: Oregon Statewide.

#### HIGHWAY CONSTRUCTION PROJECTS

| Modification Number | Publication Date |
|---------------------|------------------|
| 0                   | 01/02/2026       |
| 1                   | 01/23/2026       |

BROR0001-031 06/01/2025

|                 | Rates    | Fringes |
|-----------------|----------|---------|
| BRICKLAYER..... | \$ 49.60 | 25.15   |

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CARP0096-005 06/01/2025

|                 | Rates    | Fringes |
|-----------------|----------|---------|
| MILLWRIGHT..... | \$ 59.35 | 22.38   |

-----  
CARP0196-003 01/01/2025

|                 | Rates    | Fringes |
|-----------------|----------|---------|
| Piledriver..... | \$ 55.79 | 15.81   |

-----  
CARP0503-020 06/01/2025

|                                                            | Rates     | Fringes |
|------------------------------------------------------------|-----------|---------|
| Carpenters:                                                |           |         |
| CARPENTERS.....                                            | \$ 53.94  | 16.81   |
| DIVER STANDBY.....                                         | \$ 67.58  | 19.40   |
| DIVERS TENDERS.....                                        | \$ 60.34  | 19.40   |
| DIVERS.....                                                | \$ 103.21 | 19.40   |
| MANIFOLD AND/OR<br>DECOMPRESSION CHAMBER<br>OPERATORS..... | \$ 65.34  | 19.40   |

Employees may be required to perform any combination of work within the Diving team/crew, (except for Dive Supervisor) provided they are paid at the highest rate of pay that they received during their shift.

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\* ELEC0048-006 01/01/2025

CLACKAMAS, CLATSOP, COLUMBIA, HOOD RIVER, MULTNOMAH, TILLAMOOK, WASCO, WASHINGTON, SHERMAN AND YAMHILL (NORTH) COUNTIES

|                    | Rates    | Fringes |
|--------------------|----------|---------|
| CABLE SPLICER..... | \$ 69.85 | 30.44   |
| ELECTRICIAN.....   | \$ 63.50 | 29.73   |

HOURLY ZONE PAY:

Hourly Zone Pay shall be paid on jobs located outside of the free zone computed from the city center of the following listed cities:

Portland, The Dalles, Hood River, Tillamook, Seaside and Astoria

Zone Pay:

Zone 1: 31-50 miles \$1.50/hour  
Zone 2: 51-70 miles \$3.50/hour  
Zone 3: 71-90 miles \$5.50/hour  
Zone 4: Beyond 90 miles \$9.00/hour

\*These are not miles driven. Zones are based on Delorme Street Atlas USA 2006 plus.

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ELEC0112-001 06/01/2025

BAKER, GILLIAM, GRANT, MORROW, UMATILLA, UNION, WALLOWA, AND WHEELER COUNTIES

|                    | Rates    | Fringes |
|--------------------|----------|---------|
| CABLE SPLICER..... | \$ 63.00 | 27.87   |
| ELECTRICIAN.....   | \$ 60.00 | 27.78   |

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ELEC0280-003 01/01/2025

BENTON, CROOK, DESCHUTES, JEFFERSON, LANE (EAST OF A LINE RUNNING NORTH AND SOUTH FROM THE NORTHEAST CORNER OF COOS COUNTY TO THE SOUTHEAST CORNER OF LINCOLN COUNTY), LINN, MARION, POLK AND YAMHILL (SOUTHERN HALF) COUNTIES

|                    | Rates    | Fringes |
|--------------------|----------|---------|
| CABLE SPLICER..... | \$ 60.80 | 22.24   |
| ELECTRICIAN.....   | \$ 56.46 | 23.05   |

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ELEC0291-006 12/01/2024

MALHEUR COUNTY

|                    | Rates    | Fringes |
|--------------------|----------|---------|
| CABLE SPLICER..... | \$ 46.81 | 19.86   |
| ELECTRICIAN.....   | \$ 42.55 | 19.86   |

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\* ELEC0659-004 01/01/2026

DOUGLAS (EAST OF A LINE RUNNING NORTH AND SOUTH FROM THE NE CORNER OF COOS COUNTY TO THE SE CORNER OF LINCOLN COUNTY), HARNEY, JACKSON, JOSEPHINE, KLAMATH AND LAKE COUNTIES

|                    | Rates    | Fringes    |
|--------------------|----------|------------|
| CABLE SPLICER..... | \$ 64.58 | 1.5%+22.34 |
| ELECTRICIAN.....   | \$ 47.04 | 21.84      |

ZONE PAY: BASE POINTS ARE FROM THE DOWNTOWN POST OFFICE IN

GRANTS PASS, KLAMATH FALLS, ROSEBURG AND MEDFORD.

|         |               |                 |
|---------|---------------|-----------------|
| ZONE 1: | 0-20 MILES    | \$0.00 PER HOUR |
| ZONE 2: | > 20-30 MILES | \$1.50 PER HOUR |
| ZONE 3: | >30-40 MILES  | \$3.30 PER HOUR |
| ZONE 4: | >40-50 MILES  | \$5.00 PER HOUR |
| ZONE 5: | >50-60 MILES  | \$6.80 PER HOUR |
| ZONE 6: | >60 MILES     | \$9.50 PER HOUR |

\*THESE ARE NOT MILES DRIVEN. ZONES ARE BASED ON DELORNE STREET ATLAS USA 5.0.

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ELEC0932-004 01/01/2024

COOS, CURRY, LINCOLN, DOUGLAS AND LANE COUNTIES (AREA LYING WEST OF A LINE NORTH AND SOUTH FROM THE N.E. CORNER OF COOS COUNTY TO THE S.E. CORNER OF LINCOLN COUNTY)

|                  | Rates    | Fringes |
|------------------|----------|---------|
| ELECTRICIAN..... | \$ 50.03 | 24.00   |

-----  
ENGI0701-005 01/01/2024

ZONE 1:

POWER EQUIPMENT OPERATORS (See Footnote C)

|                          | Rates    | Fringes |
|--------------------------|----------|---------|
| POWER EQUIPMENT OPERATOR |          |         |
| GROUP 1.....             | \$ 56.66 | 16.90   |
| GROUP 1A.....            | \$ 58.82 | 16.90   |
| GROUP 1B.....            | \$ 60.98 | 16.90   |
| GROUP 2.....             | \$ 54.75 | 16.90   |
| GROUP 3.....             | \$ 53.60 | 16.90   |
| GROUP 4.....             | \$ 50.27 | 16.90   |
| GROUP 5.....             | \$ 49.03 | 16.90   |
| GROUP 6.....             | \$ 45.81 | 16.90   |

Zone Differential (add to Zone 1 rates):

Zone 2 - \$3.00

Zone 3 - \$6.00

For the following metropolitan counties: MULTNOMAH;  
CLACKAMAS; MARION; WASHINGTON; YAMHILL; AND COLUMBIA;  
CLARK; AND COWLITZ COUNTY, WASHINGTON WITH MODIFICATIONS AS  
INDICATED:

All jobs or projects located in Multnomah, Clackamas and Marion Counties, West of the western boundary of Mt. Hood National Forest and West of Mile Post 30 on Interstate 84 and West of Mile Post 30 on State Highway 26 and West of Mile Post 30 on Highway 22 and all jobs or projects located in Yamhill County, Washington County and Columbia County and all jobs or projects located in Clark & Cowlitz County, Washington except that portion of Cowlitz County in the Mt. St. Helens ""Blast Zone"" shall receive Zone I pay for all classifications.

All jobs or projects located in the area outside the identified boundary above, but less than 50 miles from the Portland City Hall shall receive Zone II pay for all

classifications.

All jobs or projects located more than 50 miles from the Portland City Hall, but outside the identified border above, shall receive Zone III pay for all classifications.

For the following cities: ALBANY; BEND; COOS BAY; EUGENE; GRANTS PASS; KLAMATH FALLS; MEDFORD; ROSEBURG

All jobs or projects located within 30 miles of the respective city hall of the above mentioned cities shall receive Zone I pay for all classifications.

All jobs or projects located more than 30 miles and less than 50 miles from the respective city hall of the above mentioned cities shall receive Zone II pay for all classifications.

All jobs or projects located more than 50 miles from the respective city hall of the above mentioned cities shall receive Zone III pay for all classifications.

#### POWER EQUIPMENT OPERATORS CLASSIFICATIONS

##### Group 1

Concrete Batch Plan and or Wet mix three (3) units or more  
Crane, Floating one hundred and fifty (150) ton but less than two hundred and fifty (250) ton.  
Crane, two hundred (200) ton through two hundred ninety-nine (299) ton with two-hundred-foot (200?) boom or less (including jib, inserts and/or attachments)  
Crane, ninety (90) ton through one hundred ninety-nine (199) ton with over two hundred (200?) boom Including jib, inserts and/or attachments)  
Crane, Tower Crane with one hundred seventy-five-foot (175?) tower or less and with less than two-hundred-foot (200?) jib  
Crane, Whirley ninety (90) ton and over Helicopter when used in erecting work  
Tunnel Boring Machine  
Tunnel, Micro Boring Tunnel Machine

##### Group 1A

Crane, floating two hundred fifty (250) ton and over  
Crane, two hundred (200) ton through two hundred ninety-nine (299) ton, with over two-hundred-foot (200?) boom (including jib, inserts and/or attachments)  
Crane, three hundred (300) ton through three hundred ninety-nine (399) ton  
Crane, Tower Crane with over one hundred seventy-five-foot (175?) tower or over two hundred foot (200?) jib  
Crane, tower Crane on rail system or 2nd tower or more in work radius

##### Group 1B

Crane, three hundred (300) ton through three hundred ninety-nine (399) ton, with over two hundred- foot (200?) boom (including jib, inserts and/or attachments)  
Floating crane, three hundred fifty (350) ton and over  
Crane, four hundred (400) ton and over

##### Group 2

Asphalt Plant (any type)  
Asphalt Roto-Mill, pavement profiler eight foot (8?) lateral cut and over

Auto Grader or ?Trimmer?  
Blade, Robotic  
Bulldozer, Robotic Equipment (any type)  
    Bulldozer, over one hundred twenty thousand (120,000) lbs.  
    and above  
Canal Trimmer  
Concrete Batch Plant and/or Wet Mix one (1) and two (2) drum  
Concrete Canal Liner Operator  
Concrete Diamond Head Profiler  
Concrete, Automatic Slip Form Paver  
    Crane, Boom Truck fifty (50) ton and with over one hundred  
    fifty-foot (150?) boom and over  
    Crane, Floating (derrick barge) thirty (30) ton but less than  
    one hundred fifty (150) ton  
Crane, Cableway twenty-five (25) ton and over  
Crane, Floating Clamshell three (3) cu. Yds. And over  
    Crane, ninety (90) ton through one hundred ninety-nine (199)  
    ton up to and including two hundred- foot (200?) boom  
    (including jib inserts and/or attachments)  
    Crane, fifty (50) ton through eighty-nine (89) ton with over  
    one hundred fifty-foot (150?) boom  
    (including jib inserts and/or attachments)  
Crane, Whirley under ninety (90) ton  
Crusher Plant  
Drone  
Excavator over one hundred thirty thousand (130,000) lbs.  
Heavy Equipment Robotics Operator or Mechanic  
Loader one hundred twenty thousand (120,000) lbs. and above  
Master environmental Maintenance Mechanic  
Remote Controlled Earth Moving Equipment  
Shovel, Dragline, Clamshell, five (5) cu. Yds. And over  
    Underwater Equipment remote or otherwise, when used in  
    construction work  
Wheel Excavator any size

#### Group 3

    Bulldozer, over seventy thousand (70,000) lbs. up to and  
    including one hundred twenty thousand (120,000) lbs.  
    Crane, Boom Truck fifty (50) ton and over with less than one  
    hundred fifty-foot (150?) boom  
    Crane, fifty (50) ton through eighty-nine (89) ton with one  
    hundred fifty-foot (150?) boom or less  
    (including jib inserts and/or attachments)  
    Crane, Shovel, Dragline or Clamshell three (3) cu. yds. but  
    less than five (5) cu. Yds.  
    Excavator over eighty-five thousand (85,000) lbs. through one  
    hundred thirty thousand  
    (130,000) lbs.  
    Loader sixty thousand (60,000) lbs. and less than one hundred  
    twenty thousand (120,000) lbs.

#### Group 4

Asphalt, Screed  
Asphalt Paver  
    Asphalt Roto-Mill, pavement profiler, under eight foot (8?)  
    lateral cut  
Asphalt, Recycle Machine  
Asphalt, Material Transfer Vehicle Operator  
Back Filling Machine  
    Backhoe, Robotic, track and wheel type up to and including  
    twenty thousand (20,000) lbs. with  
    any attachments  
Blade (any type)  
Boatman, Licensed  
Boring Machine

Bulldozer over twenty thousand (20,000) lbs. and more than one hundred (100) horse up to seventy thousand (70,000) lbs.  
Cable-Plow (any type)  
Cableway up to twenty-five (25) ton  
Cat Drill (John Henry)  
Challenger  
Chippers  
Combination Heavy Duty Mechanic-Welder, when required to do both  
Compactor, multi-engine  
Compactor, Robotic  
Compactor with blade self-propelled  
Concrete, Breaker  
Concrete, Grout Plant  
Concrete, Mixer Mobile  
Concrete, Paving Road Mixer  
Concrete, Reinforced Tank Banding Machine  
Crane, Boom Truck twenty (20) ton and under fifty (50) ton  
Crane, Bridge Locomotive, Gantry and Overhead  
Crane, Carry Deck, Spider Crane, and similar types  
Crane, Chicago Boom and similar types  
Crane, Derrick Operator, under one hundred (100) ton  
Crane, Floating Clamshell, Dragline, etc. under three (3) cu. yds. Or less than thirty (30) ton  
Crane, under fifty (50) ton  
Crane, Quick Tower under one-hundred-foot (100?) in height and less than one hundred fifty foot (150?) jib (on rail included)  
Diesel-Electric Engineer (Plant or Floating)  
Directional Drill over twenty thousand (20,000) lbs. pullback  
Drill Cat Operator  
Drill Doctor and/or Bit Grinder  
Drill, Oscillator  
Driller, Percussion, Diamond, Core, Cable, Rotary and similar type  
Excavator Operator over twenty thousand (20,000) lbs. through eighty-five thousand (85,000) lbs.  
Generator Operator  
Grade Setter/layout from plans  
Grade-all  
Guardrail Machines, i.e., punch, auger, etc.  
Hammer Operator (Piledriver)  
Hoist, stiff leg, guy derrick or similar type, fifty (50) ton and over  
Hoist, two (2) drums or more  
Hydro Axe (loader mounted or similar type)  
Jack Operator, Elevating Barges, Barge Operator, self-unloading  
Loader Operator, front end and overhead, twenty-five thousand (25,000) lbs. and less than sixty thousand (60,000) lbs.  
Log Skidders  
Mechanic, Heavy Duty  
Piledriver Operator (not crane type)  
Pipe, Bending, Cleaning, Doping and Wrapping Machines  
Rail, Ballast Tamper Multi-Purpose  
Rubber-tired Dozers and Pushers  
Scraper, all types  
Side-Boom  
Skip Loader, Drag Box  
Stump Grinder (loader mounted or similar type)  
Surface Heater and Planer  
Tractor, rubber-tired, over fifty (50) HP Flywheel

Trenching Machine three-foot (3?) depth and deeper (Assistant to the Operator required)  
 Truck, Crane Oiler-Driver 250 tons and over  
 Tub Grinder (used for wood debris)  
 Tunnel Boring Machine Mechanic ? hyperbaric pay: additional ten dollars (\$10.00) per hour, includes prep and decompress  
 Tunnel, Mucking Machine  
 Tunnel, Segment Plant  
 Tunnel, Separation Plant  
 Tunnel, Shaeff Loader  
 Tunnel, Shield Operator  
 Ultra-High-Pressure Water Jet Cutting Tool System Operator  
 Vacuum Blasting Machine Operator  
 Water pulls, Water Wagons  
 Welder; Heavy Duty

#### Group 5

Asphalt, Extrusion Machine  
 Asphalt, Roller (any asphalt mix)  
 Asphalt, Roto-Mill pavement profiler ground man  
 Bulldozer, twenty thousand (20,000) lbs. or less, or one hundred (100) horse or less  
 Cement Pump  
 Chip Spreading Machine  
 Churn Drill and Earth Boring Machine  
 Compactor, self-propelled without blade  
 Compressor, (any power) one thousand two hundred fifty (1,250) cu. ft. and over, total capacity  
 Concrete, Batch Plant Quality control  
 Concrete, Combination Mixer and compressor operator, gunite work  
 Concrete, Curb Machine, Mechanical Berm, Curb and/or Curb and Gutter  
 Concrete, Finishing Machine  
 Concrete, Grouting Machine  
 Concrete, Internal Full Slab Vibrator Operator  
 Concrete, Joint Machine  
 Concrete, Mixer single drum, any capacity  
 Concrete, Paving Machine eight foot (8?) or less (Assistance to the Operator required)  
 Concrete, Placing Boom  
 Concrete, Planer  
 Concrete, Pump  
 Concrete, Pump Truck  
 Concrete, Pumpcrete Operator (any type)  
 Concrete, Slip Form Pumps, power driven hydraulic lifting device for concrete forms  
 Concrete, Spreader  
 Concrete, Tele belt  
 Concrete, Treated Base Roller Operator, Oiling  
 Conveyored Material Hauler  
 Crane, Boom Truck under twenty (20) tons  
 Crane, Boom Type lifting device, five (5) ton capacity or less  
 Drill, Directional type less than twenty thousand (20,000) lbs. pullback  
 Drill, Mud Mixer  
 Elevating Grader Operator, Tractor towed requiring Operator or Grader  
 Elevating Loader Operator (any type)  
 Elevator to move personnel or materials  
 Forklift, over ten (10) ton or Robotic  
 Helicopter Hoist  
 Hoist Operator, single drum  
 Hydraulic Backhoe track type up to and including twenty thousand (20,000) lbs.

Hydraulic Backhoe wheel type (any make)  
Laser Screed  
Lime Spreader, construction job site  
Loaders, rubber-tired type, less than twenty-five thousand  
(25,000) lbs.  
Pavement Grinder and/or Grooving Machine (riding type)  
Pipe, cast in place Pipe Laying Machine  
Pulva-Mixer or similar types  
Pump Operator, more than five (5) pumps (any size)  
Rail, Ballast Compactor, Regulator, or Tamper machines  
Rail, Car Mover  
Rail, Clip Applicator  
Rail, High Rail Self Loader Truck  
Rail, Locomotive, forty (40) ton and over  
Rail, Lo-Railer  
Rail, Shuttle Car Operator  
Rail, Speedswing  
Rail, Track Liner  
Service Oiler (Greaser)  
Sweeper Self-Propelled, Construction Job Site  
Tractor, Rubber-Tired, fifty (50) HP flywheel and under  
Trenching Machine Operator, maximum digging capacity  
three-foot (3?) depth  
Truck, All Terrain or Track type  
Truck, Barrel type  
Truck, Crane Oiler-Driver 100-249 tons  
Truck, Heavy Haul, specialized transporter, hydraulic,  
electric, or similar  
Truck, Off Road Trucks, Articulated and Non-articulated  
Trucks over forty (40) ton  
Truck, Vacuum  
Truck, Water  
Tunnel, Locomotive, Dinkey  
Tunnel, Power Jumbo setting slip forms, etc.

#### Group 6

Air Filtration Equipment  
Asphalt, Pugmill (any type)  
Asphalt, Raker  
Asphalt, Truck Mounted Asphalt Spreader, with Screed  
Assistant to the Operator  
Auger Oiler  
Bell Man (any type of communication)  
Boatman  
Bobcat, skid steer (less than one (1) yard)  
Broom, self-propelled, construction job site  
Compressor Operator (any power) under 1,250 cu. ft. total  
capacity  
Concrete Curing Machine (riding type)  
Concrete Saw  
Conveyor Operator or Assistant  
Crane, Tugger  
Crusher Feeder  
Crusher Oiler  
Deckhand  
Drill Assistant  
Drill, Directional Locator  
Forklift  
Grade Checker  
Guardrail Punch Oiler  
Heavy Duty Repairman Assistant  
Helicopter Radioman (ground)  
Hydraulic Pipe Press  
Hydrographic Seeder Machine, straw, pulp or seed  
Hydrostatic Pump Operator

Material Handler  
Mixer Box (CTB, dry batch, etc.)  
Oiler  
Parts Man (Tool Room)  
Plant Oiler  
Pump (any power)  
Rail, Brakeman, Switchman, Motorman  
Rail, Tamping Machine, mechanical, self-propelled  
Rigger  
Roller grading (not asphalt)  
Truck, Crane Oiler-Driver under 100 tons  
Truck, Off-Road Trucks, Articulated and Non-Articulated  
Trucks forty (40) ton and under  
Truck, over highway, examples: material and equipment  
Welder's Assistant  
Welding Machine  
Wire Mat or Brooming Machine

-----  
IRON0029-004 07/07/2025

|                 | Rates    | Fringes |
|-----------------|----------|---------|
| IRONWORKER..... | \$ 48.31 | 34.52   |

-----  
LAB00737-001 06/01/2024

|                                                                                                                                                                           | Rates    | Fringes |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------|
| Mason Tender/Hod Carrier<br>Tenders to Bricklayers,<br>Tile Setters, Marble<br>Setters and Terrazzo<br>Workers, Topping for<br>Cement Finishers and<br>Mortar Mixers..... | \$ 43.79 | 17.05   |

-----  
LAB00737-008 06/01/2024

ZONE 1:  
LABORERS (SEE FOOTNOTE C)

|              | Rates    | Fringes |
|--------------|----------|---------|
| Laborers:    |          |         |
| GROUP 1..... | \$ 39.00 | 17.30   |
| GROUP 2..... | \$ 40.41 | 17.30   |
| GROUP 3..... | \$ 34.39 | 17.30   |

Zone Differential (Add to Zone 1 rates):

Zone 2 - \$0.85  
Zone 3 - 2.00  
Zone 4 - 3.00  
Zone 5 - 5.00

ZONE 1 - All jobs or projects located within 30 miles of the  
respective City Hall

ZONE 2 - More than 30 miles and less than 40 miles from the  
respective City Hall

ZONE 3 - More than 40 miles and less than 50 miles from the  
respective City Hall

ZONE 4 - More than 50 miles and less than 80 miles from the

respective City Hall

ZONE 5 - More than 80 miles from the respective City Hall.

BASEPOINTS:

|               |             |            |
|---------------|-------------|------------|
| ALBANY        | ASTORIA     | BAKER CITY |
| BEND          | BURNS       | COOS BAY   |
| EUGENE        | GRANTS PASS | HERMISTON  |
| KLAMATH FALLS | MEDFORD     | PENDLETON  |
| PORTLAND      | ROSEBURG    | SALEM      |
| THE DALLES    |             |            |

LABORER CLASSIFICATIONS

GROUP 1: Applicator (including Pot Tender for same) applying protective material by hand or nozzle on utility lines or storage tanks on project, Asphalt Plant; Asphalt Spreader; Batch Weighman; Broomers; Brush Burners and Cutters; Choker Setter; Choker Splicer; Clary Power Spreader; Clean-up Laborer; Clean up Nozzleman (concrete, rock, etc); Concrete Laborer; Crusher Feeder; Curing, Concrete; Demolition, wrecking, and moving; Dopping and Wrapping Pipe; Dumpman (for Grading Crew); Erosion Control Specialist; Fine Graders; Fence Builders; Form Strippers; Guard Rail, Median Rail, Barriers, Reference Post, Guide Post, Right of Way Marker; Remote Control (Dry Pack Machine, Jackhammer, Chipping Guns, Compaction, Paving Breakers, Hand Held Concrete Saw, Demo Saw, Core Drill); Precast Concrete Setter; Pressure Washer; Railroad Track Laborer; Ribbon Setter; Rip Rap Map; Sand Blasting (Wet); Scaffold Tender; Self Propelled Concrete Buggy; Sewer Laborer; Sign Erector; Signalman; Scissor and Manlift; Skipman; Slopers; Sprayman; Stake Chaser; Stake Setter; Tamper; Timber Faller and Bucker; Tool Operators (Hand Held, Walk Behind)

GROUP 2: Asbestos Removal; Asphalt Rakers, Bit Grinder, Concrete Core Drill, Concrete Pump Nozzleman, Concrete Saw Operator (Walk Behind, Walk Saw, Rail Mounted, Wire); Drill Operator; Grade Checker; Gunite Nozzleman; Hazardous Waste Laborer; High Scalars; Laser Bean (Pipe Laying); Loop Installation; Manhole Builder; Mold Remediation Laborer; Nippers and Timberman; Pipelayer; Powderman; Power Saw Operators (Bucking and Falling); Pumpcrete Nozzleman; Sand Blasting (Dry); Sewer Timberman; Tugger Operator; Vibrators; Water Blaster

GROUP 3: Final Clean-up(detailed clean-up, limited to cleaning up floors, ceilings, walls, windows-prior to acceptance by the owner); Fire Watch; Landscaper; Traffic Flagger

FOOTNOTE C:

HANDLING OF HAZARDOUS WAST MATERIALS - Personnel in all craft classifications subject to working inside a federally designated Hazardous Waste perimeter shall be eligible for compensation in accordance with the following group schedule relative to the level of Hazardous Waste as outline in the specific Hazardous Waste Project Site Safety Plan:

H-1 Base Wage Rate when on a hazardous waste site when not outfitted with protective clothing.

H-2 Class ""C"" Suit - Basic hourly wage rate plus \$1.00 per hour, fringes plus \$0.15.

H-3 Class ""B"" Suit - Basic hourly wage rate plus \$1.50 per hour, fringes plus \$0.15.

H-4 Class ""A"" Suit -Basic hourly wage rate plus \$2.00 per hour, fringes plus \$0.15.

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PAIN0010-005 07/01/2025

|  | Rates | Fringes |
|--|-------|---------|
|--|-------|---------|

PAINTER

HIGHWAY & PARKING LOT

|              |          |       |
|--------------|----------|-------|
| STRIPER..... | \$ 41.19 | 17.09 |
|--------------|----------|-------|

-----  
PAIN0010-008 01/01/2025

|  | Rates | Fringes |
|--|-------|---------|
|--|-------|---------|

|              |          |       |
|--------------|----------|-------|
| PAINTER..... | \$ 40.25 | 16.67 |
|--------------|----------|-------|

-----  
PLAS0555-001 06/01/2025

ZONE 1:

|  | Rates | Fringes |
|--|-------|---------|
|--|-------|---------|

Cement Masons: (ZONE 1)

CEMENT MASONS DOING BOTH

COMPOSITION/POWER

MACHINERY AND

|                             |          |       |
|-----------------------------|----------|-------|
| SUSPENDE/HANGING SCAFFOLD.. | \$ 48.05 | 20.31 |
|-----------------------------|----------|-------|

CEMENT MASONS ON

SUSPENDE, SWINGING AND/OR

|                       |          |       |
|-----------------------|----------|-------|
| HANGING SCAFFOLD..... | \$ 47.09 | 20.31 |
|-----------------------|----------|-------|

|                    |          |       |
|--------------------|----------|-------|
| CEMENT MASONS..... | \$ 46.13 | 20.31 |
|--------------------|----------|-------|

COMPOSITION WORKERS AND

|                              |          |       |
|------------------------------|----------|-------|
| POWER MACHINERY OPERATORS... | \$ 47.09 | 20.31 |
|------------------------------|----------|-------|

Zone Differential for Cement Mason - Add to Basic Hourly Rate  
FOR THE FOLLOWING CITIES: (Reference City)  
Bend, Portland, Pendleton, Medford, Corvallis, Salem, Eugene,  
The Dalles, Vancouver

When a contractor takes current employees to a project that is located more than 59 miles from the City Hall of the Reference City that is closest to the contractor's place of business, Zone Pay is to be paid for the distance between the City Hall of the identified Reference City and the project site, per the following:

Zone A - 60-79 miles - additional \$3.00 hourly premium above the base

rate of all classification as listed in Schedule ""A"".

Zone B - 80-99 miles - additional \$5.00 hourly premium above the base rate of all classifications as listed in Schedule ""A""

Zone C -100 or more miles - additional \$10.00 hourly premium  
above the base rate of all classifications as listed in  
Schedule ""A""

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ZONE 1:

TRUCK DRIVERS (See Footnote C):

|                | Rates    | Fringes |
|----------------|----------|---------|
| Truck drivers: |          |         |
| GROUP 1.....   | \$ 35.41 | 18.30   |
| GROUP 2.....   | \$ 35.57 | 18.30   |
| GROUP 3.....   | \$ 35.74 | 18.30   |
| GROUP 4.....   | \$ 36.08 | 18.30   |
| GROUP 5.....   | \$ 36.35 | 18.30   |
| GROUP 6.....   | \$ 36.57 | 18.30   |
| GROUP 7.....   | \$ 36.82 | 18.30   |

Zone Differential (add to Zone 1 rates):

Zone 2 - \$0.65

Zone 3 - 1.15

Zone 4 - 1.70

Zone 5 - 2.75

Zone 1 - All jobs or projects located within 30 miles of the  
respective City Hall

Zone 2 - More than 30 miles and less than 40 miles from the  
respective City Hall

Zone 3 - More than 40 miles and less than 50 miles from the  
respective City Hall

Zone 4 - More than 50 miles and less than 80 miles from the  
respective City Hall

Zone 5 - More than 80 miles from the respective City Hall

#### BASEPOINTS:

|             |            |               |
|-------------|------------|---------------|
| ALBANY      | ASTORIA    | BAKER         |
| BEND        | BINGEN     | BROOKINGS     |
| BURNS       | COOS BAY   | CORVALLIS     |
| EUGENE      | GOLDENDALE | GRANTS PASS   |
| HERMISTON   | HOOD RIVER | KLAMATH FALLS |
| LAGRANDE    | LAKEVIEW   | LONGVIEW      |
| MADRAS      | MEDFORD    | MCMINNVILLE   |
| OREGON CITY | NEWPORT    | ONTARIO       |
| PENDLETON   | PORTLAND   | PORT ORFORD   |
| REEDSPORT   | ROSEBURG   | SALEM         |
| THE DALLES  | TILLAMOOK  | VANCOUVER     |

#### TRUCK DRIVER CLASSIFICATIONS

GROUP 1: A-frame or hydra-lift truck w/load bearing surface;  
Articulated dump truck; Battery rebuilders; Bus or manhaul  
driver; Concrete buggies (power operated); Concrete pump  
truck; Dump trucks, side, end and bottom dumps, including  
semi-trucks and trains or combinations thereof: up to and  
including 10 cu. yds.; Lift jitneys, fork lifts (all sizes  
in loading, unloading and transporting material on job  
site); Loader and/or leverman on concrete dry batch plant

(manually operated); Lubrication man, fuel truck driver, tireman, wash rack, steam cleaner or combination; Pilot car; Pickup truck; Slurry truck driver or leverman; Solo flat bed and misc. body truck, 0-10 tons; Team drivers; Tireman; Transit mix and wet or dry mix trucks: 5 cu yds. and under; Water wagons (rated capacity) up to 3,000 gallons

GROUP 2: Boom truck/hydra-lift or retracting crane; Challenger; Dumpsters or similar equipment-all sizes; Dump trucks/articulated dumps 6 cu to 10 cu.; Flaherty spreader driver or leverman; Low bed equipment, flat bed semi-truck and trailer or doubles transporting equipment or wet or dry materials; Lumber carrier, driver-straddle carrier (used in loading, unloading and transporting of materials on job site); Oil distributor driver or leverman; Transit mix and wet or dry mix trucks: over 5 cu yds and including 7 cu. yds; Vacuum trucks; Water Wagons (rated capacity) over 3,000 to 5,000 gallons

GROUP 3: Ammonia nitrate distributor driver; Dump trucks, side, end and bottom dumps, including semi-trucks and trains or combinations thereof: over 10 cu. yds. and including 30 cu. yds., includes articulated dump trucks; Self-Propelled street sweeper; Transit mix and wet or dry mix trucks, over 7 cu. yds. and including 11 cu. yds.; truck mechanic-Welder-Body repairman; Utility and clean-up truck; Water wagons (rated capacity) 5,000 to 10,000 gallons.

GROUP 4: Asphalt Bruner; Dump trucks, side, end and bottom dumps, including semi-trucks and trains or combinations thereof: over 30 cu. yds. and including 50 cu. yds. includes articulated dump trucks; Fire guard; Transit Mix and Wet or Dry Mix Trucks, over 11 cu. yds. and including 15 cu. yds.; Water Wagon (rated capacity) over 10,000 gallons to 15,000 gallons

GROUP 5: Composite Crewman; Dump trucks, side, end and bottom dumps, including semi-trucks and trains or combinations thereof: over 50 cu. yds. and including 60 cu. yds., includes articulated dump trucks

GROUP 6: Bulk cement spreader w/o auger; Dry Pre-Batch concrete mix trucks; Dump trucks, side, end and bottom dumps, including semi-trucks and trains of combinations thereof: over 60 cu. yds. and including 80 cu. yds. and includes articulated dump trucks; Skid truck

GROUP 7: Dump trucks, side, end and bottom dumps, including semi-trucks and trains or combinations thereof: over 80 cu. yds. and including 100 cu. yds. includes articulated dump trucks; Industrial lift truck (mechanical tailgate)

#### FOOTNOTE C:

HANDLING OF HAZARDOUS WAST MATERIALS -(LABORERS, POWER EQUIPMENT OPERATORS, AND TRUCK DRIVERS): Personnel in all craft classifications subject to working inside a federally designated Hazardous Waste perimeter shall be eligible for compensation in accordance with the following group schedule relative to the level of Hazardous Waste as outline in the specific Hazardous Waste Project Site Safety Plan:

H-1 Base Wage Rate when on a hazardous waste site when not

outfitted with protective clothing.

H-2 Class ""C"" Suit - Basic hourly wage rate plus \$1.00 per hour, fringes plus \$0.15.

H-3 Class ""B"" Suit - Basic hourly wage rate plus \$1.50 per hour, fringes plus \$0.15.

H-4 Class ""A"" Suit -Basic hourly wage rate plus \$2.00 per hour, fringes plus \$0.15.

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Rates Fringes

Timber Sales Roads:

|                          |          |      |
|--------------------------|----------|------|
| LABORERS.....            | \$ 8.35  | 4.30 |
| OPERATING ENGINEERS..... | \$ 10.37 | 4.15 |
| POWER SAW, DRILLER,      |          |      |
| POWDERMAN.....           | \$ 9.12  | 4.30 |
| TEAMSTERS.....           | \$ 9.74  | 3.74 |

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year.

Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at

<https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at [www.dol.gov/whd/govcontracts](http://www.dol.gov/whd/govcontracts).

Unlisted classifications needed for work not included within

the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

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The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

#### Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

#### Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

#### Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are

based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

#### State Adopted Rate Identifiers

The "SA" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

#### WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys  
Wage and Hour Division  
U.S. Department of Labor  
200 Constitution Avenue, N.W.  
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations  
Wage and Hour Division  
U.S. Department of Labor  
200 Constitution Avenue, N.W.  
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7).

Requests for review and reconsideration can be submitted via email to [dba.reconsideration@dol.gov](mailto:dba.reconsideration@dol.gov) or by mail to:

Wage and Hour Administrator  
U.S. Department of Labor  
200 Constitution Avenue, N.W.  
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board  
U.S. Department of Labor  
200 Constitution Avenue, N.W.  
Washington, DC 20210.

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END OF GENERAL DECISION"